



CHAPTER xvii.

An Act to empower the Metropolitan Water Board to execute works and to acquire lands and for other purposes. [15th April 1946.]

WHEREAS the Metropolitan Water Board (hereinafter referred to as "the Board") were established by the Metropolis Water Act of 1902 and are charged with the duty of supplying water within an area which comprises the whole of the county of London and parts of the counties of Middlesex Surrey Kent Essex and Hertford: ^{2 Edw. 7. c. 41.}

And whereas the demand for water within the limits of supply of the Board has increased and is likely further to increase:

And whereas by orders made by the Minister of Health under the Defence (General) Regulations 1939 made in pursuance of the Emergency Powers (Defence) Act 1939 the Board were authorised to construct certain boreholes with pump-houses and pumping plant and certain lines of pipes in the metropolitan borough of Lewisham and in the urban district of Orpington and the rural district of Dartford in the county of Kent and have completed or are in course of completing the construction thereof but the powers conferred by the said orders for the maintenance and use of the said works will cease to be exerciseable upon the expiration of the period (as extended by any Order in Council made under the Supplies and Services (Transitional Powers) Act 1945) during which the regulations under which the orders were made continue in force: ^{2 & 3 Geo. 6. c. 62.} ^{9 Geo. 6. c. 10.}

And whereas it will be necessary for the Board to continue to use for the purposes of their undertaking the said boreholes pump-houses and lines of pipes after the expiration of the said

regulations and it is accordingly expedient that the construction by the Board of the said works should be sanctioned and confirmed and that the Board should be empowered to maintain and use the same :

And whereas it is expedient that the Board should be empowered to construct and maintain the new works described in this Act and to acquire lands for the purposes thereof and for other purposes of their undertaking and that the other powers with respect to the execution of works and the acquisition of lands contained in this Act should be conferred upon the Board :

And whereas the Board are authorised to abstract and take water from the river Thames and the river Lee for the purposes of their undertaking under powers and subject to conditions which are conferred and prescribed by (inter alia) certain of the Acts of or relating to the conservators of the river Thames and the Lee Conservancy Board respectively :

22 & 23 Geo. 5.
c. xxxvii.
18 & 19 Vict.
c. cxcvi.

And whereas the Board on the one hand and the said conservators and conservancy board respectively on the other hand have agreed that the Thames Conservancy Act 1932 and the River Lee Water Act 1855 should be amended as provided by this Act and it is expedient that the said amendments should be enacted :

And whereas it is expedient that the Board should be empowered to borrow money for the construction of the works authorised by this Act and other purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that such further powers should be conferred upon the Board and that such further provisions should be enacted as are contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines situations and levels of the works (other than the substituted portion of Work No. 6 as defined in this Act which is hereinafter referred to as " the substituted work ") by this Act authorised (such plans showing also the lands which may be acquired or used by the Board for the purposes of the said works) and plans showing the lands which may be acquired by the Board for other purposes mentioned in this Act together with a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same were in the month of November one thousand nine hundred and forty-four deposited with the several clerks of the county councils of the administrative counties of Buckingham Essex Hertford Kent London Middlesex and Surrey and the town clerk of the county

borough of Croydon and are in this Act respectively referred to as the originally deposited plans sections and book of reference:

And whereas a plan and section showing the situation line and level of the substituted work and the lands which may be taken or used compulsorily for the purposes thereof and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were deposited in the month of May one thousand nine hundred and forty-five with the clerk of the county council of the administrative county of Middlesex and are in this Act respectively referred to as the substituted plan section and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Metropolitan Water Board Short title. Act 1946.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

- Part I.—Preliminary.
- Part II.—Works and lands.
- Part III.—Financial provisions.
- Part IV.—Miscellaneous.

3. This Act shall be deemed to have been passed before the coming into operation of the Water Act 1945.

Saving for Water
Act 1945.
8 & 9 Geo. 6.
c. 42.

4. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say):—

Incorporation
of Acts.

The Lands Clauses Acts except sections 127 to 133 of the Lands Clauses Consolidation Act 1845 and the words “with two sufficient sureties to be approved of by two justices in case the parties differ” in section 85 of that Act and except section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860;

8 & 9 Vict.
c. 18.

23 & 24 Vict.
c. 106.

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

10 & 11 Vict.
c. 17.

The construction of the waterworks;

PART I.
—cont.

The construction of works for the accommodation of lands adjoining the waterworks;

The breaking up of streets for the purpose of laying pipes;

The provision for guarding against fouling the water of the undertakers;

The recovery of damages not specially provided for and of penalties and the determination of any other matter referred to justices or to the sheriff; and

Access to the special Act;

26 & 27 Vict.
c. 93.

The Waterworks Clauses Act 1863 (except section 12 of that Act and the words "under any agreement for the supply of water for other than domestic purposes" in section 13 of the said Act); and

8 & 9 Vict.
c. 20.

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and section 16 of that Act:

30 & 31 Vict.
c. 127.

Provided that for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Board shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly:

Provided also that the said provisions of the Railways Clauses Consolidation Act 1845 shall only apply to lands near the new works.

Interpretation
of terms.

5.—(1) The several words and expressions to which by the Acts wholly or partly incorporated with this Act meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that in and for the purposes of this Act the expressions "the undertakers" or "the promoters of the undertaking" or "the company" used in such incorporated Acts shall mean the Board. Provided also that for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 the new works shall be deemed to be the railway and the centre lines of—

(a) the embankments of the reservoirs; and

(b) the cuts or conduits;

authorised by this Act as shown on the originally deposited plans or the substituted plan shall be deemed to be the centre of the railway.

(2) In this Act unless the subject or context otherwise requires—

PART I.
—cont.

“ The Board ” means the Metropolitan Water Board;

“ The undertaking ” means the undertaking of the Board as from time to time authorised;

“ The substituted portion of Work No. 6 ” means that portion of the conduit No. 4 (Work No. 6) by this Act authorised which is shown on the substituted plan and is situate in the urban district of Feltham between a point on the centre line of the said Work No. 6 as shown on the originally deposited plans coincident with the southerly side of Ashford Road and a point on the said centre line one hundred and thirty yards south-eastward of the point marked thereon denoting six miles and four furlongs;

“ The water fund ” means the water fund established by the Board under the Metropolis Water Act 1902;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919; 9 & 10 Geo. 5. c. 57.

“ The arbitrator ” where used in Part II (Works and lands) of this Act means the arbitrator to whom any question of disputed compensation is referred pursuant to the Acquisition of Land (Assessment of Compensation) Act 1919;

“ The limits of supply ” means the limits within which the Board are for the time being authorised to supply water;

“ The existing works ” means the works described in section 6 (Confirmation of existing waterworks) of this Act;

“ The new works ” means the works described in section 7 (Power to make works) of this Act.

PART II.

WORKS AND LANDS.

6. The construction by the Board of the works described in this section together with all incidental and ancillary pipes works buildings plant and apparatus is hereby sanctioned and confirmed and the board may maintain the same and may retain hold and use as part of and for the purposes of the undertaking all or any lands or any interest in lands which have been already acquired by the Board for the purposes of or in connection with the said works or any of them and the expenditure of money by the Board for the purposes of

Confirmation
of existing
waterworks.

PART II.
—cont.

the said works and the acquisition of the said lands and interests is hereby sanctioned and confirmed. The said works are—

- (1) A borehole on lands in the urban district of Orpington in the county of Kent situate in the enclosure numbered 370 on the 1/2500 Ordnance map Kent sheet XVI.7 (edition of 1933):
- (2) A borehole on lands in the metropolitan borough of Lewisham in the county of London situate on the eastern side of the river Ravensbourne in the enclosure numbered 128 on the 1/2500 Ordnance map London sheets XIV.5 and XIII.8 (edition of 1916):
- (3) A borehole on lands in the urban district of Orpington in the said county of Kent situate in the enclosure numbered 758 on the 1/2500 Ordnance map Kent sheet XXVII.8 (edition of 1909):
- (4) A borehole on lands in the parish of Sutton-at-Hone in the rural district of Dartford in the said county of Kent belonging to the Board and forming part of their Darenth works.

Power to
make works.

7. Subject to the provisions of this Act the Board may make and maintain the works hereinafter in this section described in the lines and situations according to the levels and upon in or under the lands following (that is to say):—

- (a) as respects the substituted portion of Work No. 6 the lines situations and levels delineated on the substituted plan and section and the lands delineated on the substituted plan and described in the substituted book of reference; and
- (b) as respects the remainder of the works hereinafter in this section described the lines situations and levels delineated on the originally deposited plans and sections and the lands delineated on the originally deposited plans and described in the originally deposited book of reference.

The works hereinbefore referred to are—

Work No. 1. A cut (Cut No. 1) in the parish of Datchet in the rural district of Eton in the county of Buckingham commencing by a junction with the river Thames and terminating in a pumping station (hereinafter referred to as "pumping station No. 1") proposed to be constructed by the Board in the enclosure numbered 129 in that parish on the 1/2500 Ordnance map Buckinghamshire sheet LVI.11 (revision of 1932);

- Work No. 2. A conduit (conduit No. 1) in the said parish of Datchet commencing in the pumping station No. 1 and terminating in the reservoir No. 1 (Work No. 4) by this Act authorised;
- Work No. 3. A conduit (conduit No. 2) commencing in the said parish of Datchet in the pumping station No. 1 and terminating in the urban district of Staines in the county of Middlesex in the reservoir No. 2 (Work No. 7) by this Act authorised;
- Work No. 4. A reservoir (reservoir No. 1) partly in the said parish of Datchet partly in the parish of Horton in the said rural district of Eton and partly in the borough of Slough in the said county of Buckingham;
- Work No. 5. A conduit (conduit No. 3) commencing in the said parish of Horton in the reservoir No. 1 (Work No. 4) by this Act authorised and terminating in the said borough of Slough in a pumping station (hereinafter referred to as "pumping station No. 2") proposed to be constructed by the Board in the enclosures respectively numbered 6 in the parish of Slough and 77 in the parish of Horton on the 1/2500 Ordnance map Buckinghamshire sheet LVI.12 (revision of 1932) or in one of those enclosures;
- Work No. 6. A conduit (conduit No. 4) commencing in the said borough of Slough in the pumping station No. 2 and terminating in the urban district of Feltham in the said county of Middlesex in the Kempton Park works of the Board;
- Work No. 7. A reservoir (reservoir No. 2) partly in the said parish of Horton partly in the parish of Wyrardisbury in the said rural district of Eton and partly in the said urban district of Staines;
- Work No. 8. A conduit (conduit No. 5) in the said urban district of Staines commencing in the reservoir No. 2 (Work No. 7) by this Act authorised and terminating in a pumping station (hereinafter referred to as "pumping station No. 3") proposed to be constructed by the Board in the enclosure numbered 129 on the 1/2500 Ordnance map Middlesex sheet XIX.6 (revision of 1934);
- Work No. 9. A conduit (conduit No. 6) in the said urban district of Staines commencing in the pumping station No. 3 and terminating by a junction with the conduit No. 4 (Work No. 6) by this Act authorised in the enclosure numbered 159 on the 1/2500 Ordnance map Middlesex sheet XIX.6 (revision of 1934);

PART II.
—cont.

Work No. 10. A cut (cut No. 2) in the said urban district of Staines being a diversion of the river Wyrardisbury commencing and terminating by junctions with that river;

Work No. 11. A conduit (conduit No. 7) in the said urban district of Staines commencing by a junction with an existing main of the Board in their Staines works and terminating by a junction with the conduit No. 4 (Work No. 6) by this Act authorised in the enclosure numbered 215 on the 1/2500 Ordnance map Middlesex sheet XIX.11 (edition of 1914);

Work No. 12. A conduit (conduit No. 8) commencing in the urban district of Sunbury-on-Thames in the said county of Middlesex in a pumping station (pumping station No. 4) proposed to be constructed by the Board in the enclosure numbered 10 on the 1/2500 Ordnance map Middlesex sheet XXIV.8 (revision of 1934) and terminating in the said urban district of Feltham by a junction with the conduit No. 4 (Work No. 6) by this Act authorised in the enclosure numbered 155 in the parish of Feltham on the 1/2500 Ordnance map Middlesex sheet XXV.1 (revision of 1934);

Work No. 13. A conduit (conduit No. 9) in the said parish of Datchet commencing in the pumping station No. 1 and terminating by a junction with the river Thames;

Work No. 14. An adit in the rural district of Dartford in the county of Kent commencing in the parish of Darenth by a junction with an existing well of the Board in their Darenth works and terminating in the parish of Sutton-at-Hone by a junction with an existing borehole of the Board in their said Darenth works;

Work No. 15. A well and pumping station (well and pumping station A) in the urban district of Orpington in the said county of Kent in the enclosure numbered 370 on the 1/2500 Ordnance map Kent sheet XVI.7 (edition of 1933);

Work No. 16. A well and pumping station (well and pumping station B) in the parish of Horton Kirby in the said rural district of Dartford in the enclosure numbered 186 on the 1/2500 Ordnance map Kent sheet XVII.3 (revision of 1936);

Work No. 17. A well and pumping station (well and pumping station C) in the said parish of Horton Kirby in the enclosure numbered 186 on the 1/2500

Ordnance map Kent sheet XVII.3 (revision of 1936);

Work No. 18. A well and pumping station (well and pumping station D) in the parish of Brasted in the rural district of Sevenoaks in the said county of Kent in the enclosure numbered 75A in that parish on the 1/2500 Ordnance map Kent sheet XXXIX.3 (revision of 1936);

Work No. 19. A well and pumping station (well and pumping station E) in the said parish of Brasted in the enclosure numbered 75A in that parish on the 1/2500 Ordnance map Kent sheet XXXIX.3 (revision of 1936);

Work No. 20. A well and pumping station (well and pumping station F) in the parish of Shoreham in the said rural district of Sevenoaks in the enclosure numbered 220 on the 1/2500 Ordnance map Kent sheet XXIX.1 (revision of 1936);

Work No. 21. A well and pumping station (well and pumping station G) in the said parish of Shoreham in the enclosure numbered 325 on the 1/2500 Ordnance map Kent sheet XXIX.1 (revision of 1936).

8. The Board shall commence the construction of the reservoir No. 2 (Work No. 7) by this Act authorised before they commence the construction of the reservoir No. 1 (Work No. 4) so authorised. Reservoir No. 2 to be constructed first.

9. In addition to the new works the Board may upon in or under any lands delineated on the originally deposited plans or the substituted plan relating to those works respectively make or place and maintain all such shafts headings adits conduits pipes culverts overflows works for the treatment of water buildings machinery plant electric lines works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the first-mentioned works or their undertaking or necessary or expedient for augmenting or improving the supply of water but nothing in this section shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. Provided that any electric lines works and apparatus made or placed and maintained under the provisions of this section shall not be made placed maintained or used so as to interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line. Subsidiary works.

41 & 42 Vict. c. 76.

PART II.
—cont.

plant shall be placed or maintained under the powers of this section upon the surface of any land dedicated to public use or acquired by a highway authority for the widening or improvement of any road. Provided further that nothing contained in this section shall be deemed to affect or prejudice section 34 (Limiting powers of Board to abstract water) of the Metropolitan Water Board (Various Powers) Act 1907.

7 Edw. 7.
c. clxxiv.

Power to
divert roads
and footpaths.

10. The Board may divert the roads and public footpaths referred to in the next following table in the manner shown upon the originally deposited plans and (in the case of the roads referred to in the said table) upon the originally deposited sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each of the said roads and footpaths as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say):—

Road or footpath.	County.	Local area.	Number on plan of road or footpath or of enclosure traversed by footpath.
Road	Buckingham	Parish of Horton in the rural district of Eton.	135
Road	Middlesex	Urban district of Staines.	18
Road	Middlesex	Urban district of Staines.	78
Footpath	Buckingham	Parish of Wyrardisbury in the rural district of Eton.	9
Footpath	Buckingham	Parish of Datchet in the rural district of Eton.	15
Footpath	Middlesex	Urban district of Staines.	29A 113A and 29
Footpath	Middlesex	Urban district of Staines.	29 75 and 37
Footpath	Middlesex	Urban district of Staines.	109 and 112
Footpath	Surrey	Urban district of Walton and Weybridge.	8

Stopping up
roads and
footpaths in
case of
diversion.

11.—(1) Where this Act authorises the diversion of a road or public footpath and the stopping up of an existing road or public footpath or any portion thereof such stopping up shall not take place until in the case of a new road the new road is completed to the satisfaction of the highway authority and is open for public use or in case of difference between the Board and the highway authority until two justices shall have certified that the new road has been completed to their satisfaction and is open for public use and in the case of a public footpath until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

(2) Before applying to the justices for their certificate in the case of a new road the Board shall give to the highway authority seven days' notice in writing of their intention to apply for the same:

(3) As from the completion of the new road to the satisfaction of the highway authority or as from the date of the said certificate (as the case may be) all rights of way over or along the existing road or portion thereof or over or along the existing footpath or portion thereof shall be extinguished and the Board may subject to the provisions of the Waterworks Clauses Act 1847 with respect to mines appropriate and use for the purposes of the undertaking the site of the portion of the road or footpath stopped up as far as the same is bounded on both sides by lands of the Board.

12. The Board may stop up the road and footpaths referred to in the next following table so far as the same are shown on the deposited plans as intended to be stopped up and thereupon all rights of way over the said road and footpaths or portions thereof shall be extinguished:—

Power to stop up road and footpaths.

Road or footpath.	County.	Local area.	Number on plan of road or footpath or of enclosure traversed by footpath.
Road	Middlesex	Urban district of Staines.	70
Footpath	Buckingham	Parish of Datchet in the rural district of Eton.	35 34 33 29
Footpath	Buckingham	Parish of Horton in the rural district of Eton.	28 and 30
Footpath	Buckingham	Parish of Horton in the rural district of Eton.	69 66 64 and 60
Footpath	Middlesex	Urban district of Staines.	1 3 6 7 and 8
Footpath	Middlesex	Urban district of Sunbury-on-Thames.	III
			9 and 29

Provided that such road and footpaths or portions thereof shall not be stopped up unless the Board are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree.

13. The Board shall make compensation to all parties interested in respect of any private rights of way extinguished by virtue of section 11 (Stopping up roads and footpaths in case of diversion) or section 12 (Power to stop up road and footpaths) of this Act and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Compensation in respect of extinguishment of private rights of way.

PART II.

—cont.

For protection
of Postmaster-
General.

14.—(1) Notwithstanding the stopping up of any portion of any of the roads or public footpaths specified in section 10 (Power to divert roads and footpaths) or section 12 (Power to stop up road and footpaths) of this Act the following provisions shall have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such portion of the road or footpath at the time when it is stopped up:—

- (a) The Postmaster-General shall have power to remove the line so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Board of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Board in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Board the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Board and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the Board have stopped up any portion of any of the said roads or footpaths they shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression “telegraphic line” has the same meaning as in the Telegraph Act 1878.

15. Subject to the provisions of this Act in the construction of the new works the Board may deviate laterally from the lines or situations thereof shown on the originally deposited plans or the substituted plan (as the case may be) to any extent not exceeding the limits of deviation shown on those plans and where in the case of any road no such limits are so shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the originally deposited sections or the substituted section (as the case may be) in the case of the reservoirs Nos. 1 and 2 so authorised to any extent not exceeding five feet upwards and fifteen feet downwards and in the case of other works to any extent not exceeding five feet upwards and to any extent downwards:

Provided that—

- (a) the Board shall not construct any embankment or wall of either of the said reservoirs of a greater height above the general surface of the ground than that shown on the originally deposited sections in respect of the corresponding embankment or wall and five feet in addition; and
- (b) except for the purpose of crossing over a stream no part of any conduit or pipe shall be raised above the surface of the ground unless and except so far as is shown on the originally deposited sections or the substituted section (as the case may be).

16. It shall be lawful for the Board at any point outside the limits of supply to make maintain and use junctions connections and communications between all or any of the existing works or of the new works and any mains pipes conduits aqueducts culverts or other works of the Board made or to be made:

Power to
Board to
make
junctions &c

Provided that the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes (as modified by section 18 (Breaking up of roads and footpaths) of this Act) shall apply to the making maintenance and use of any such junctions connections or communications in any street:

Provided also that the Board shall not exercise the powers of this section in respect of any street or road belonging to or maintainable by or which crosses under a railway of a railway company or the London Passenger Transport Board without the consent in writing of that company or board but such consent shall not be unreasonably withheld and if any difference arises as to whether such consent is unreasonably withheld such difference shall be referred to arbitration.

PART II.

—cont.

Notice to commissioner of police.

17. Before breaking up or otherwise interfering with the surface of any street within the metropolitan police district or within any county outside that district in connection with the execution of the new works or any subsidiary work in connection with those works or in the exercise of the powers of section 16 (Power to Board to make junctions &c.) of this Act the Board shall (except in cases of emergency) give fourteen days' notice in writing to the Commissioner of Police of the Metropolis or to the chief constable of the county affected (as the case may require) and make such arrangements with the said commissioner or such chief constable as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street during the execution of the works.

Breaking up of roads and footpaths.

18. For the purpose of making or maintaining any of the new works or any subsidiary work in connection with such works the Board may (but subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes which provisions shall apply except so far as they are inconsistent with the express provisions of this section) open and break up any public road or public footpath shown on the originally deposited plans or the substituted plan in connection with such works in under across or over which any such works are authorised to be constructed. Provided that where they open or break up any such road or footpath they shall be subject to the following obligations:—

- (1) They shall with all convenient speed complete the work on account of which they open or break up the road or footpath and subject to the making and maintenance of the said work fill in the ground and make good the surface and restore the portion of the road or footpath to as good a condition as that in which it was when it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby:
- (2) They shall in the meantime cause the place where the road or footpath is opened or broken up to be fenced and watched and to be properly lighted at night:
- (3) Where they require under the powers of this section to open or break up any such road within the metropolitan police district or within any county outside that district for the purpose of laying mains pipes or other works across the same they shall not except as hereinafter provided execute their works in such a way as to obstruct the entire width of the carriageway at any one time but shall make provision for the

accommodation of a single line of vehicular traffic at the point at which the works are executed. Provided that if and whenever it shall be necessary for any such purpose as aforesaid for the Board to obstruct the entire width of the carriageway of any road within the metropolitan police district or within any county outside that district at any one time it shall be lawful for them to do so but in that case they shall provide and during the continuance of the obstruction maintain at the point at which the works are executed such temporary accommodation (if any) for vehicular traffic as the Commissioner of Police of the Metropolis within the metropolitan police district or the chief constable of a county outside that district may require.

19.—(1) The Board during and for the purpose of the execution of the new works (other than such works as are referred to in paragraph (3) of the proviso to section 18 (Breaking up of roads and footpaths) of this Act) may temporarily stop up and interfere with any street or road or part of a street or road comprised in the limits of deviation shown on the originally deposited plans or the substituted plan and may for any reasonable time prevent all persons other than those bona fide going to or coming from any premises in the street or road or part of a street or road so stopped up from passing along and using the same. Temporary
stoppage
of streets.

(2) The Board shall provide reasonable access for vehicles and foot passengers bona fide going to or coming from any such premises and for vehicular and pedestrian traffic going to or coming from any station goods yard or other railway premises of a railway company or of the London Passenger Transport Board or any depot garage works or other premises owned or occupied by the London Passenger Transport Board.

20. Subject to the other provisions of this Act the Board may for the purposes of and in connection with the new works and within the limits of deviation for such works shown on the originally deposited plans or the substituted plan raise sink or otherwise alter the position of or may remove any sewer drain gas or water main or pipe or electric line or any other obstruction of a like nature making in case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration or removal. Provided that— Alteration of
position of
mains &c.

(a) the powers of this section so far as they relate to works of a local authority (including a county council) shall not be exercised unless such exercise is reasonably

PART II.
—cont.45 & 46 Vict.
c. 56.
62 & 63 Vict.
c. 19.

necessary and any question as to whether or not the same is reasonably necessary shall be referred to arbitration;

- (b) nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1935 to which the provisions of section 15 of the Electric Lighting Act 1882 and sections 17 and 18 of the schedule to the Electric Lighting (Clauses) Act 1899 apply otherwise than in accordance with such provisions; and
- (c) the Board shall not raise sink or otherwise alter the position of any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and in accordance with the provisions of the said Telegraph Act 1878.

General
provisions for
protection of
gas water and
electricity
mains and
sewers.

21.—(1) Before commencing any of the works authorised by this Act in or under any street or road or any lands in under or over which any mains pipes syphons electric lines or other works (hereinafter called "apparatus") of any company body or authority authorised by any Act of Parliament or Provisional Order confirmed by an Act of Parliament or other order having the force of an Act of Parliament to supply gas water hydraulic power or electricity or any sewers drains electric lines pipes syphons or other works (hereinafter called "pipes") of any main or other sewerage authority constituted by Act of Parliament or of the council of any county or of any municipal borough or of any urban or rural district or of any parish (each of which companies bodies authorities and councils is hereinafter referred to as "the protected body") are situate the Board shall deliver to the protected body plans sections and descriptions of all works so proposed to be executed describing the proposed manner of executing the same and such plans sections and descriptions shall be delivered to the protected body at least one month before the commencement of any such work.

(2) If it should appear to the protected body that such works will interfere with or endanger any of their apparatus or pipes or any pipes connected therewith or impede the supply of gas water hydraulic power or electricity by means of such apparatus or the flow of sewage or drainage through such pipes or render materially less convenient the access by the protected body to any such apparatus or pipes the protected body may give notice to the Board to lower or otherwise alter the position of such apparatus or pipes or to support the same or to substitute temporarily or otherwise other apparatus or pipes in such manner as may be considered necessary and to lay or

place under any apparatus or pipes cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution or laying or placing cement concrete or other like substance (hereinafter called "protective works") shall be settled as hereinafter provided. All such protective works shall save as hereinafter provided be done and executed by and at the expense of the Board but to the satisfaction and under the superintendence of the engineer of the protected body and the reasonable costs charges and expenses of such superintendence shall be paid by the Board. If any protected body by notice in writing to the Board within twenty-one days after the receipt by them of notice of the intended commencement by the Board of any such works of the Board so require the protected body may by their own engineer or workmen do and execute protective works so far as they affect the apparatus or pipes of the protected body and the Board shall on the completion thereof pay to the protected body the reasonable expenses incurred by them in the execution of such protective works.

(3) If within twenty-one days from the delivery of the plans sections and descriptions to the protected body as aforesaid the protected body do not intimate to the Board any objection or make any requirement with reference thereto the works shown and described thereon shall be executed in strict accordance therewith.

(4) The protected body may if they deem fit employ watchmen or inspectors to watch and inspect the works whereby any apparatus or pipes of the protected body or any pipes connected therewith will be or be likely to be interfered with or affected during the construction repair or renewal of such works and the reasonable wages of such watchmen or inspectors shall be borne by the Board and be paid by them to the protected body.

(5) If any interruption in the supply of gas water hydraulic power or electricity by means of any apparatus or in the flow of sewage or drainage through any pipes shall without the written authority of the protected body be in any way occasioned either by reason of the exercise of the statutory powers conferred upon the Board or by the act or default of the Board or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Board shall forfeit and pay to the protected body for the use and benefit of the protected body a sum not exceeding twenty pounds for every day during which such interruption shall continue.

(6) The expense of all repairs or renewals of any apparatus or pipes of the protected body or any works in connection therewith which may be rendered necessary either by reason

PART II.
—cont.

of the exercise of the statutory powers conferred upon the Board or by the acts or defaults of the Board their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the Board whether during the construction of such works or within twelve months of the completion thereof shall be borne and paid by the Board.

(7) It shall be lawful for the protected body and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands works and premises of the Board at any point or place where there are existing apparatus or pipes of the protected body or pipes connected with such apparatus or pipes and to inspect such apparatus or pipes and to do all such works in and upon such lands and premises as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus or pipes under or over the same lands and premises and notwithstanding the stopping up temporarily of any street or road under the powers of this Act to exercise the same rights of access as they now enjoy to all or any apparatus of the protected body situate in or under any such street or road. Provided always that in so doing the protected body their engineers or workmen or others in the employ of the protected body shall not unreasonably interrupt the user of any of the works of the Board by this Act authorised. Provided also that the protected body shall make good to the satisfaction of the Board all damage to such works occasioned by the exercise of the powers by this section reserved to the protected body and shall reimburse to the Board all expenditure incurred by them in consequence of or in connection with such damage.

(8) If any difference shall arise with respect to any matter under this section between the Board and the protected body or their engineer or concerning any plans sections or descriptions to be delivered to the protected body under the foregoing provisions of this section the matter in difference shall be referred to and settled by arbitration and in settling any question under this section an arbitrator shall have regard to any duties or obligations which the protected body may be under in respect of their apparatus or pipes and may if he thinks fit require the Board to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the protected body's apparatus or pipes are used.

Power to
divert
streams &c.

22.—(1) It shall be lawful for the Board to divert and alter the course of any stream watercourse or ditch on any lands acquired or appropriated by them for the purposes

of the new works and the existing bed banks and channel of the diverted portion of such streams watercourses and ditches shall by virtue of this Act vest in the Board and may be appropriated and used by the Board for the purposes of or in connection with those works.

(2) Nothing in this section or done by the Board thereunder shall in any way alter or affect the boundary between any local areas formed by any such stream watercourse or ditch as aforesaid but such boundary shall continue as if the stream watercourse or ditch forming the same had not been diverted and this Act had not been passed.

(3) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for damage sustained by them or any liability to which they may become subject by reason of the exercise of those powers. Any difference as to the amount of the compensation to be paid shall be referred to and determined by an arbitrator.

(4) Before diverting or altering any stream watercourse or ditch in or flowing through the county of Kent which forms the boundary between the areas of any local authorities the Board shall record upon a plan the course of that stream and the intended diversion or alteration thereof and shall deposit such plan at the Board's head office and the said plan shall be open at all times to inspection by any person interested in the stream diverted or altered who shall be entitled without payment of a fee to make copies of the said plan.

(5) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other provision of this Act relating to the diversion of streams watercourses or ditches.

23. And whereas in order to avoid in the execution of the new works or the maintenance of those works or the existing works injury to the houses and buildings within fifty feet of any of such works it may be necessary to underpin or otherwise strengthen the same Therefore the Board at their own costs and charges may and (if required by the owners or lessees of any such house or building) shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

(1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:

PART II.
—cont.

- (2) Each such notice if given by the Board shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Board:
- (3) If any owner lessee or occupier of any such house or building or the Board as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer (in this section referred to as "the referee") to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Acts 1889 to 1934 shall apply to the reference:
- (4) The referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and (if so required by such owner lessee or occupier) shall prescribe the mode in which the same shall be executed and the Board may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Board shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Board such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Board then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Board shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:

- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Board from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

24.—(1) For the purpose of constructing maintaining repairing altering cleansing testing or examining any of the existing works or of the new works or for the purpose of disposing of any water flowing into any excavation made by the Board during the construction and for the purposes of any of the new works the Board may cause the water in any such work or excavation to be discharged into any available river stream ditch or watercourse Provided that any water so discharged shall be discharged in such manner as not to cause the flooding of or any injury to any highway Provided also that any water so discharged shall so far as may be reasonably practicable be free from mud or solid or offensive matter and from matter injurious to fish or spawn or spawning beds or food of fish.

Temporary
discharge of
water into
streams.

(2) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers the amount of such compensation to be settled in case of difference by an arbitrator.

(3) (a) Not less than seven days before commencing under the powers of this section to discharge water directly or indirectly into any river stream ditch or watercourse under the jurisdiction of the catchment board the Board shall (except in the case of emergency) give to the engineer of the catchment board notice in writing of their intention so to do specifying the date time of commencement and probable duration of the discharge and the point at which and the nature of the work (and if such work is a water main or pipe the diameter of the main or pipe) from which the water will be discharged and (if pumping plant is to be used in connection with the discharge) the maximum capacity of the pumping plant.

(b) Where the Board discharge water during an emergency they shall forthwith give to the engineer of the catchment board notice thereof to be confirmed as soon as possible by

PART II.
—cont.

notice in writing and such further particulars relative to such discharge as the catchment board may reasonably require.

(c) The Board shall give due regard to any representations which may be made to them on behalf of the catchment board as to the time and mode of discharge with a view to avoiding or minimising injury or interference therefrom.

20 & 21 Geo. 5.
c. 44.

(d) In this subsection the expression "the catchment board" means the catchment board of the catchment area in which any water is proposed to be discharged under the powers of this section or any drainage board constituted or treated as having been constituted under the Land Drainage Act 1930 and having jurisdiction in such catchment area.

(4) The powers of this section shall not be exercised so as to damage or injuriously affect the railways or property of a railway company or of the London Passenger Transport Board.

Period for
completion of
new works.

25. If the new works are not completed on or before the expiration of fifteen years from the first day of October one thousand nine hundred and forty-six then as from the date of such expiration the powers by this Act granted to the Board for the making of the said works or otherwise in relation thereto shall cease except as to so much thereof respectively as is then completed. Provided that the Board may at any time and from time to time alter reconstruct renew or remove the said works as and when occasion may require.

Power to take
waters.

26. The Board may for the purposes of the undertaking—

- (a) continue to pump collect impound take use divert and appropriate by means of the existing works or any of them; and
- (b) pump collect impound take use divert and appropriate by means of such of the new works as consist of wells and pumping stations;

all underground streams springs and waters which are or will or may be intercepted by those works respectively.

For protection
of local sources
of supply.

27.—(1) In this section—

"the authorised work" means any of the wells and pumping stations A B C D E F and G (Works Nos. 15 16 17 18 19 20 and 21) and the adit (Work No. 14) by this Act authorised and any of the boreholes referred to in section 6 (Confirmation of existing waterworks) of this Act;

"protected source" means any well pond spring or stream which is situate within a radius of one mile from the centre of the authorised work and is used

at the passing of this Act as an effective source of supply;

PART II.
—cont.

“ owner ” includes lessee or occupier.

(2) If at any time after the completion of the authorised work it shall be proved by the owner of any protected source (in this section referred to as “ the proving owner ”) that the pumping by the Board at that work has caused a diminution or cesser of the supply of water in such protected source the Board shall upon the written request of the proving owner afford or procure to be afforded to him a supply of water equal to the amount of such diminution or the supply which shall have ceased (as proved) at such cost or rate (if any) as that the total cost to the proving owner of obtaining his full supply shall be the same after as before the construction of the authorised work and upon such other terms as may be agreed or failing agreement may be determined by arbitration.

(3) Notwithstanding anything in this section—

- (a) the Board shall not be under any obligation to afford or procure to be afforded a supply of water for domestic purposes under this section in respect of any protected source the water from which is so polluted as to be or to be likely to be injurious or dangerous to health;
- (b) the Board shall not be liable in respect of any claim made by the proving owner under this section if such owner shall have failed to afford to the Board and their officers servants and other representatives at all reasonable times after the passing of this Act access to the protected source in respect of which the claim is made and facilities for ascertaining particulars thereof and the level of the water therein;
- (c) the Board shall not be subject to the obligations of this section which require a supply of water to be afforded to or procured for the proving owner if prevented from supplying water thereunder in consequence of frost drought or other unavoidable cause or any accident.

(4) All mains pipes meters and fittings required for the purpose of supplying water to any proving owner in pursuance of this section shall be provided laid down and fixed and all such mains pipes and meters shall be maintained by and at the expense of the Board and the proving owner shall afford to the Board all reasonable or necessary facilities for these purposes but all such fittings which shall be placed or fixed upon the land or premises of any proving owner shall

PART II.
—cont.

be repaired maintained and (when necessary) renewed and made good by such owner to the satisfaction of the Board.

(5) The Board may if they think fit in lieu of affording or procuring to be afforded a supply of water equal to the diminution of the supply or cesser of supply in any such protected source deepen such protected source or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution or cesser and the proving owner shall without making any charge therefor give to the Board access and every facility for carrying out such deepening borings or headings.

(6) The Board may if they think fit in lieu of affording or procuring to be afforded a supply of water equal to the diminution or the supply which shall have ceased as aforesaid make compensation in money to any such proving owner for such diminution or cesser of supply and they shall also make like compensation for any injury caused to such owner by the powers conferred by the last preceding subsection.

(7) (a) For the purpose of affording a supply of water under this section the Board may supply water beyond the limits of supply and carry out all such works within or beyond such limits as may be necessary for that purpose.

(b) In exercising the powers conferred by this subsection the Board shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers.

(8) Any question which may arise between the Board and any proving owner as to the quantity time place or manner of the supply to be afforded or procured to be afforded by the Board in pursuance of this section and any other question dispute or difference which may arise between the Board and the proving owner under the foregoing provisions of this section (including any difference as to the amount of any compensation payable by the Board under subsection (6) or subsection (7) of this section) shall be determined by arbitration.

(9) The Board and the proving owner may enter into and fulfil agreements with reference to the supply of water by the Board to such owner or with reference to any matter referred to in this section and may by any such agreement alter or modify any of the provisions of this section so far as they relate to such owner and to the Board.

Works to be
part of under-
taking of
Board.

28. The new works and the existing works shall be deemed part of the undertaking of the Board.

29. Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated upon the originally deposited plans or the substituted plan and described in the originally deposited book of reference or the substituted book of reference as they may require for the purposes of or in connection with the new works.

PART II.
—cont.

Power to
acquire land
for new works.

30.—(1) The Board may in lieu of acquiring any lands for the purposes of so much of the new works as will be laid underground acquire such easements and rights in such lands as they may require for the purpose of constructing placing laying inspecting maintaining cleansing repairing conducting managing renewing or enlarging such works and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the provisions of the Lands Clauses Acts shall apply to such easements and rights as fully as if the same were lands within the meaning of such Acts.

Power to
acquire
easements
only.

(2) As regards any lands used by the Board for the purpose of any such works which are laid underground the Board shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been used by the Board.

(3) Provided always that (except as to land forming part of a street) nothing in this section contained shall authorise the Board to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and (except as aforesaid) every notice to treat for the acquisition of an easement shall be endorsed with notice of this proviso.

31. The following provisions shall at the option of the Board be applicable with regard to all or any of the lands to be acquired by the Board for the purposes of such parts of the new works as are to be laid underground (that is to say):—

Rights of
passage over
lands acquired
by Board to be
reserved in
certain cases.

(1) The Board shall not be required to fence off or sever such lands from any adjoining lands of the vendor but they shall upon the acquisition of such first-mentioned lands grant to the vendor thereof and all persons lawfully claiming or to claim through or under him a full and free right of way or passage

PART II.
—cont.

thereover at all times (except at such times as the said works shall be in actual course of construction repair or renewal) and either with or without horses or vehicles for all purposes of or connected with the use or enjoyment of such adjoining lands of the same description in all respects as he or they would have enjoyed or been entitled to exercise if the Board had not acquired the lands acquired by them and also the right of constructing maintaining and using across the lands so acquired by the Board (but in such position and in such manner as the Board shall in writing first approve) roadways dedicated or intended eventually to be dedicated to the use of the public:

- (2) The arbitrator in assessing the amount of the compensation to be paid by the Board for the acquisition of any lands to which this section applies shall take into account the provisions of this section and the benefits to accrue to the vendor thereunder:
- (3) The provisions of this section shall not apply with respect to any lands unless such provisions shall be stated in the notice to treat for the acquisition thereof.

As to use of
subsoil of
streets for
aqueducts.

32. Subject to the provisions of this Act the Board may for the purposes of the new works remove and appropriate and use without payment of compensation therefor the subsoil and under-surface of any public street road footway or place in which such works are to be laid and which is shown on the originally deposited plans or the substituted plan with reference thereto and described in the originally deposited book of reference or the substituted book of reference or so much thereof as shall be necessary for the purposes aforesaid.

Power to
acquire
additional
lands.

33.—(1) Subject to the provisions of this Act the Board may purchase take and use for the purposes hereinafter respectively specified the whole or so much as they think fit of the lands hereinafter described with reference to those purposes respectively or any outstanding estate or interest therein which lands are delineated upon the originally deposited plans and described in the originally deposited book of reference:—

(A) For the provision of filtration stations pumping stations and buildings and works in connection therewith—

(a) Lands in the parish of Horton in the rural district of Eton in the county of Buckingham comprising the whole of the enclosures respectively numbered 51 51A 51B 72 and 88 in that parish on the 1/2500 Ordnance map Buckinghamshire

sheets LVI.11 (revision of 1932) and LVI.12 (revision of 1932) and parts of the enclosures respectively numbered 71 71A and 72A in that parish on the 1/2500 Ordnance map Buckinghamshire sheet LVI.12 (revision of 1932);

(b) Lands in the urban district of Sunbury-on-Thames in the county of Middlesex comprising the whole of the enclosures respectively numbered 9 10 15 16 17 18 107 108 109 263 271 273 274 275 280 379 and 380 in the parish of Sunbury on the 1/2500 Ordnance map Middlesex sheets XXIV.4 (revision of 1934) XXIV.8 (revision of 1934) and XXV.5 (revision of 1934) and parts of the enclosures respectively numbered 36 105 272 276 279 and 383 in the parish of Sunbury on the 1/2500 Ordnance map Middlesex sheets XXIV.8 (revision of 1934) and XXV.5 (revision of 1934);

(c) Lands in the urban district of Feltham in the county of Middlesex comprising parts of the enclosures respectively numbered 123 and 124 in the parish of Hanworth on the 1/2500 Ordnance map Middlesex sheet XXV.1 (revision of 1934);

(d) Lands in the urban district of Walton and Weybridge in the county of Surrey comprising the whole of the enclosures respectively numbered 18A 20 25 25A 26 27 and 28 and parts of the enclosures respectively numbered 17 18 29 29A 32 and 41 on the 1/2500 Ordnance map Surrey sheet XII.1 (revision of 1933):

(B) For the construction of service reservoirs and works in connection therewith—

(a) Lands in the metropolitan borough of Greenwich in the county of London comprising parts of the enclosures respectively numbered 126 127 and 128 on the 1/2500 Ordnance map London sheet X.6 (edition of 1916);

(b) Lands in the metropolitan borough of Woolwich in the said county of London comprising part of the enclosure numbered 153 on the 1/2500 Ordnance map London sheet XI.5 (edition of 1916);

(c) Lands in the borough of Hendon in the county of Middlesex comprising the whole of the enclosures respectively numbered 809 811 and 812 and part of the enclosure numbered 810 on the 1/2500 Ordnance map Middlesex sheet VI.15 (revision of 1935);

PART II.
—cont.

(d) Lands in the urban district of Enfield in the said county of Middlesex comprising the enclosure numbered 62 and parts of the enclosures respectively numbered 54 and 54A in the parish of Enfield on the 1/2500 Ordnance map Middlesex sheet VII.1 (revision of 1935);

(e) Lands in the urban district of Cheshunt in the county of Hertford comprising part of the enclosure numbered 36 in the parish of Cheshunt on the 1/2500 Ordnance map Hertfordshire sheets XXXVI.14 (edition of 1924 and XLI.2 revision of 1935);

(f) Lands in the parish of Epping Upland in the rural district of Epping in the county of Essex comprising parts of the enclosures respectively numbered 418 435 and 438 on the 1/2500 Ordnance map Essex (New Series) sheet NLX.11 (edition of 1920);

(g) Lands in the urban district of Orpington in the county of Kent comprising part of the enclosure numbered 145C in the parish of Farnborough on the 1/2500 Ordnance map Kent sheet XVI.13 (edition of 1933) and part of the enclosure numbered 148A in the said parish on the 1/2500 Ordnance map Kent sheets XVI.13 (edition of 1933) and XVI.14 (edition of 1933);

(h) Lands in the parish of Farningham in the rural district of Dartford in the said county of Kent comprising part of the enclosure numbered 65C on the 1/2500 Ordnance map Kent sheet XVII.6 (revision of 1932);

(i) Lands in the parish of Shoreham in the rural district of Sevenoaks in the said county of Kent comprising part of the enclosure numbered 121B on the 1/2500 Ordnance map Kent sheet XVI.16 (edition of 1933);

(j) Lands partly in the parish of Sundridge and partly in the parish of Brasted in the said rural district of Sevenoaks comprising the enclosures respectively numbered 261 in the parish of Sundridge and 236A in the parish of Brasted on the 1/2500 Ordnance map Kent sheet XXXIX.7 (revision of 1937);

(k) Lands in the urban district of Crayford in the said county of Kent comprising the enclosure numbered 269A on the 1/2500 Ordnance map Kent sheet III.13 (revision of 1939) and an un-numbered enclosure adjoining that enclosure:

(C) For the general purposes of the undertaking—

PART II.
—cont.

(a) Lands in the parish of Great Amwell in the rural district of Ware in the county of Hertford—

(i) comprising parts of the enclosures respectively numbered 354 and 393 on the 1/2500 Ordnance map Hertfordshire sheet XXX.13 (edition of 1921); and

(ii) comprising the enclosures respectively numbered 329 and 329A on the 1/2500 Ordnance map Hertfordshire sheet XXX.13 (edition of 1921);

(b) Lands in the parish of Stanstead St. Margarets in the said rural district of Ware—

(i) comprising part of the enclosure numbered 24 on the 1/2500 Ordnance map Hertfordshire sheet XXXVII.1 (edition of 1920); and

(ii) comprising part of the enclosure numbered 26 on that Ordnance map;

(c) Lands in the said parish of Great Amwell comprising part of the enclosure numbered 79 on the 1/2500 Ordnance map Hertfordshire sheet XXXVII.1 (edition of 1920);

(d) Lands partly in the said parish of Stanstead St. Margarets and partly in the said parish of Great Amwell comprising parts of the enclosures respectively numbered 61 and 77 on the 1/2500 Ordnance map Hertfordshire sheet XXXVII.1 (edition of 1920);

(e) Lands in the urban district of Hoddesdon in the said county of Hertford comprising part of the enclosure numbered 153 on the 1/2500 Ordnance map Hertfordshire sheet XXXVII.5 (edition of 1920);

(f) Lands in the urban district of Esher in the said county of Surrey comprising part of the enclosure numbered 18 on the 1/2500 Ordnance map Surrey sheet XII.7 (revision of 1937);

(g) Lands in the urban district of Chislehurst and Sidcup in the said county of Kent comprising parts of the enclosures respectively numbered 163 and 186 in the parish of North Cray on the 1/2500 Ordnance map Kent sheet VIII.8 (edition of 1933);

(h) Lands in the borough of Dartford in the said county of Kent comprising part of the enclosure numbered 249 on the 1/2500 Ordnance map Kent sheet IX.6 (edition of 1933);

PART II.
—cont.

(i) Lands in the parish of Southfleet in the rural district of Dartford in the said county of Kent—

(i) comprising parts of the enclosures respectively numbered 179 179C and 182B in that parish on the 1/2500 Ordnance map Kent sheet X.9 (edition of 1933); and

(ii) comprising another part of the said enclosure numbered 179 on the said Ordnance map;

(j) Lands in the parish of Eynsford in the said rural district of Dartford comprising parts of the enclosures respectively numbered 231 and 232 in that parish on the 1/2500 Ordnance map Kent sheet XVII.10 (revision of 1936):

(D) For the protection of the sources of supply of the Board—

(a) Lands in the borough of Bexley in the county of Kent comprising the enclosure numbered 239 and parts of the enclosures respectively numbered 236 237 and 240 on the 1/2500 Ordnance map Kent sheet VIII.8 (edition of 1933);

(b) Lands partly in the said borough of Bexley and partly in the urban district of Crayford in the said county of Kent comprising parts of the enclosures respectively numbered 124 125 and 146 in the parish of Bexley on the 1/2500 Ordnance map Kent sheets IX.1 (edition of 1933) and IX.5 (edition of 1933).

(2) Before using under the powers of this section any lands which adjoin a highway the Board shall confer with the highway authority concerned and if so required by that authority shall convey to them any part or parts of such lands which the highway authority may require for the purpose of extending or improving the highway upon such terms and conditions as may be agreed between the Board and the highway authority or as failing agreement may be settled by arbitration. Provided that the Board shall not be required under this subsection to convey to any highway authority such a quantity of any such lands that the remainder thereof would be insufficient for the purpose for which the Board require to use it.

Correction of errors in deposited plans and books of reference.

34. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the originally deposited plans or the substituted plan or described in the originally deposited book of

reference or the substituted book of reference the Board after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and if the lands are situate in an administrative county such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof shall be deposited with the clerk of the council of the county district in which the lands are situate and if the lands are situate in a rural parish with the clerk of the parish council (if any) of that parish or if there be no parish council then with the chairman of the parish meeting of the parish and such certificate or copy and duplicate respectively shall be kept by such clerks respectively or by the chairman for the time being of such parish meeting (as the case may be) with the other documents to which the same relate and thereupon the originally deposited plans and book of reference or the substituted plan and book of reference (as the case may be) shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with the certificate.

35. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

36. And whereas in the construction of the new works or otherwise in the exercise by the Board of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the originally deposited plans or the substituted plan will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provision shall have effect:—

Owners may be required to sell to Board parts only of certain lands and buildings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described

PART II.
—cont.

in the First Schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to collectively as "the scheduled properties" and severally as a "scheduled property":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the arbitrator shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed:
- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the arbitrator shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator:
- (5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the whole or any

part of the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:

PART II.
—cont.

- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any of the scheduled properties.

37. In settling any question of disputed purchase money or compensation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and forty-four if in the opinion of the arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation
in case of
recently
altered
buildings
acquired by
Board.

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—cont.

Power to enter
upon property
for survey &c.

38. The Board and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk of the Board may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings which may be taken or used under the powers conferred by this Act or any of them or any premises in respect of which a claim for compensation under this Act is received for the purpose of surveying and valuing the said lands and buildings and of inspecting the said premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands buildings or premises.

Extinction of
private rights
of way.

39.—(1) Any private right of way over land which the Board are authorised by this Act to acquire compulsorily shall if they so resolve and give notice of their resolution to the owner of the right be extinguished as from the acquisition by them of the land or as from the expiration of one month from the service of the notice whichever may be the later.

(2) The Board shall pay compensation to all persons interested in respect of any such right so extinguished and such compensation shall in case of dispute be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

Limit of time
for compulsory
purchase of
lands by
Board.

40. The powers of the Board for the compulsory purchase or taking of lands under the provisions of this Act shall cease on the expiration of three years from the first day of October one thousand nine hundred and forty-six.

Power to
appropriate
lands for
purposes of
Act.

41. The Board may appropriate and use for the purposes of the new works or other the purposes of this Act any lands vested in them at the date of the passing of this Act and not required for the purposes for which the same are now authorised to be held by the Board:

Provided that nothing contained in this section or done thereunder shall confer upon the Board in relation to any such lands any power of taking impounding or appropriating water which would not be exerciseable by them in relation to such lands if this Act had not been passed.

Repeal of
orders
authorising
existing
works.

42. The following orders made by the Minister of Health under the Defence (General) Regulations 1939 are hereby repealed but without prejudice to the validity of anything done thereunder:—

- (a) The order dated the ninth day of December one thousand nine hundred and forty-one whereby the construction of the borehole thirdly referred to in

section 6 (Confirmation of existing waterworks) of this Act was authorised; and

- (b) The order dated the twenty-ninth day of July one thousand nine hundred and forty-two and intituled "the Metropolitan Water Board Order 1942" whereby the construction of the remainder of the existing works was authorised.

43.—(1) The Board may on all or any of the lands for the time being held by them execute for the purposes of or in connection with the undertaking any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847.

(2) Provided that the Board shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

44. Section 25 (Power to Board to purchase additional lands by agreement) of the Metropolitan Water Board (Various Powers) Act 1907 is hereby repealed.

45.—(1) The acquisition by the Board of land (being the site of a gravel pit from which substantially the whole of the gravel has been excavated) with a view to the utilisation of such land—

- (a) for the deposit of surplus material excavated by the Board in the execution of works or in or in connection with the erection of buildings or structures; or
(b) for filling in and levelling the same with such surplus material so as to render the land available for agricultural or housing purposes;

shall be deemed to be a purpose of the undertaking.

(2) Within one month after any gravel pit shall have been filled in and levelled the Board shall give notice thereof to the county council of the administrative county in which the land containing the pit is situate and such county council shall during a period of three months after the receipt of such notice have the option to purchase such land for the purpose of any of their functions at a price to be agreed or failing agreement to be determined by arbitration under the Acquisition of Land (Assessment of Compensation) Act 1919.

46. For the protection of the Tottenham and District Gas Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the Board and the company have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the originally deposited plans the Board

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—cont.

shall not acquire compulsorily the interest of the company in the lands numbered on the said plans in the urban district of Hoddesdon:

- (2) As from the date on which the Board acquire the interest of the owner in fee simple of the said lands the deed of grant dated the second day of August one thousand nine hundred and thirty-two and made between Harold Manser of the one part and the Tottenham and District Gas Company of the other part shall apply and have effect as if the Board had been a party thereto instead of the said Harold Manser.

For protection
of Uxbridge
Maidenhead
Wycombe and
District Gas
Company.

47. For the protection of the Uxbridge Maidenhead Wycombe and District Gas Company (in this section referred to as "the company") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the Board and the company apply and have effect (that is to say):—

- (1) The Board shall pay to the company the cost reasonably incurred by the company in laying a new twelve-inch gas main along the diversion authorised by section 10 (Power to divert roads and footpaths) of this Act of the roads numbered 135 in the parish of Horton in the rural district of Eton and 18 in the urban district of Staines and the Board shall not interfere with the existing main in the said roads until the new main has been laid and is ready for use:
- (2) If any difference shall arise between the Board and the company under this section such difference shall be referred to arbitration in accordance with the provisions of this Act.

For protection
of West Kent
Electric
Company.

48. For the protection of the West Kent Electric Company Limited (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the Board and the company apply and have effect:—

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire any part of—
- (i) the cable of the company situate under the lands (g) described in paragraph (C) of subsection (1) of section 33 (Power to acquire additional lands) of this Act; or
- (ii) the cable of the company situate over the lands (j) described in the said paragraph (C);
- or any works or apparatus of the company connected with either of those cables:

- (2) The Board shall not on the said lands (g) or (j)—
(i) execute any works or erect any buildings;
or

(ii) do any other act or thing;

which would endanger either of the said cables or interfere with the proper user thereof or access thereto. Any dispute between the Board and the company under this subsection shall be determined by arbitration:

- (3) Notwithstanding anything in the foregoing provisions of this section if the maintenance of either of the said cables in its existing position would prevent or interfere with the user by the Board of the land under or over which it is situate for any purpose for which they may require to use that land the Board may at their own expense and upon and subject to such terms and conditions as may be agreed between them and the company or as (failing such agreement) shall be determined by arbitration make such diversion or alteration of the position of such cable as may be reasonably necessary in the circumstances but so as not to interrupt the continuity of the supply of electricity by means of the said cable.

49. For the protection of the conservators of the river Thames (in this section referred to as "the conservators") the following provisions shall unless otherwise agreed in writing between the Board and the conservators have effect (that is to say):—

For protection
of conservators
of river
Thames.

(1) In this section—

"main river" means that part of the channel of the river Thames above Teddington Lock and the watercourses which are respectively to be treated as and deemed to be the main river and parts thereof and are shown by distinctive colours on the map of the river Thames (above Teddington Lock) catchment area prepared in pursuance of section 5 of the Land Drainage Act 1930 and for the time being in force;

"works" includes the new works and any works executed by the Board under the powers conferred by section 9 (Subsidiary works) or section 22 (Power to divert streams &c.) of this Act so far as such works affect the main river:

- (2) The works shall be executed and maintained in accordance with plans elevations and sections to be submitted to and to be subject to the reasonable

PART II.
—cont.

approval of the conservators and shall be executed and maintained to the reasonable satisfaction of the chief engineer of the conservators. Provided that if the conservators shall not signify their approval or disapproval of any plans elevations or sections within twenty-eight days after they shall have been submitted the conservators shall be deemed to have approved thereof:

- (3) The works shall be so constructed as not to cause any interruption to the normal flow of water in the main river:
- (4) The Board shall give to the conservators at least one month's notice in writing of the time and place of the commencement of any of the works:
- (5) The works when commenced shall be proceeded with and completed as early as practicable and the Board shall upon the completion of such of the works as are of a permanent nature remove the whole and every part of such (if any) of the works as are of a temporary nature and materials therefor which may have been placed in the main river by or at the instance of the Board and in particular all piles and other works in the bed of the main river shall if required by the conservators be drawn and not cut off and on the Board failing so to do the conservators may remove the same charging the Board with the expense of so doing and the Board shall forthwith repay to the conservators all expenses so incurred:
- (6) The Board shall not (except so far as shall be necessary in the construction of the works) take any gravel soil or other material from the bed of the main river:
- (7) Any difference which may arise between the Board and the conservators under this section shall be referred to and determined by arbitration.

For protection
of Southern
and Great
Western
Railway
Companies.

50. For the protection of the Southern Railway Company and the Great Western Railway Company (each of whom is in this section referred to as "the railway company") the following provisions in addition to any other provision for their protection contained in this Act or the Acts incorporated therewith shall unless otherwise agreed apply (that is to say):—

- (1) In the work of constructing laying down maintaining repairing renewing or removing any cut conduit or line or lines of pipes or any other works in exercise of any of the powers conferred by this Act (which work and works and any of them and any part thereof are in this section referred to as "the Board's

work ") upon along across under or over the railways works lands or property of the railway company or under over or across any level-crossing over any such railway or under over across or in any way affecting the structure of any bridge over or under such railways or the approaches to or roads over any such bridge or any other road which the railway company are or may be liable to maintain the Board's work shall be executed under the superintendence and to the reasonable satisfaction of the chief engineer of the railway company whose railways bridges works lands or other property or level-crossing may be affected or by whom any such road is liable to be maintained (in this section called " the engineer ") and shall be in accordance with plans specifications sections and detailed drawings (in this section referred to as " the plans ") previously submitted to and approved in writing by the engineer or in case of difference settled by arbitration Provided that if the engineer shall not within twenty-eight days after the plans shall have been submitted for his approval notify to the Board in writing his disapproval thereof he shall be deemed to have approved the plans;

- (2) The Board's work shall subject as hereinafter provided be executed by and at the expense of the Board who shall also make good and restore to the reasonable satisfaction of the engineer any property or works of the railway company or any roads or footpaths liable to be maintained by them which may be interfered with by the execution of the Board's work and shall to the like satisfaction maintain such roads or footpaths (so far as the same may have been so interfered with) for three months after such restoration and for such further time (if any) not being more than twelve months in the whole as such roads or footpaths shall continue to subside:
- (3) The Board shall give not less than twenty-eight days' notice in writing to the railway company before commencing any of the Board's work affecting the railways bridges level-crossings works lands or property of the railway company or within ten yards of the railway company's boundary:
- (4) The Board's work shall be executed by the Board at such times and in such manner as the engineer may reasonably direct and so as to cause as little

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—cont.

injury as may be to the railways bridges level-crossings works lands and property of the railway company or to any road which the railway company may be liable to maintain:

- (5) If the railway company at any time or times hereafter require (of which they shall be the sole judges) to adapt their railways or any part or parts thereof for working by electrical power or to construct any additional or other works upon their lands or railways or in connection therewith or to widen alter reconstruct or repair their railways bridges or works upon across over or under the Board's work or if at any time or times hereafter a bridge shall be constructed in substitution for a level-crossing upon across over or under the Board's work (all of which works and operations are hereinafter referred to as "the operations of the railway company") the railway company may on giving to the Board twenty-eight days' notice in writing under the hand of their secretary or general manager divert alter support or carry the Board's work across over or under the railways lands works or property of the railway company at any other point to the satisfaction of the engineer of the Board doing as little damage as may be and without being liable to pay compensation in respect of such diversion alteration supporting or carrying of the Board's work and where the operations of the railway company are carried out under powers existing at the date of the passing of this Act (but not in any other case) the Board shall repay to the railway company the cost reasonably incurred by them in carrying out such diversion alteration supporting or carrying of the Board's work:
- (6) In the diversion or alteration by the railway company of the Board's work under the last preceding subsection the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the Board and in accordance with plans specifications sections and detailed drawings previously submitted to and approved in writing by the said engineer or in case of difference settled by arbitration and if the said engineer shall not within twenty-eight days after the said plans specifications sections and detailed drawings shall have been submitted for his approval notify to the railway company in writing his disapproval of the same he shall be deemed to have approved thereof and the railway company shall not at any time or in any manner

cause any avoidable interruption in the supply of water by the Board and if any such interruption shall be caused by or be attributable to the works of the railway company or to any acts or defaults of the railway company or their officers servants contractors or workmen or any other person employed by them in connection with such works or from the failure of any such works the railway company shall indemnify and save harmless the Board from all and any claims and demands which may be made upon the Board in connection with such interruption and shall also make compensation to the Board in respect of any loss or injury which they may sustain or any expense to which they may be put in connection with such interruption and the amount of such compensation shall in case of difference be settled by arbitration:

- (7) In executing and maintaining the Board's work the Board shall not at any time or in any manner cause any damage or injury to the railways or works of the railway company or any injury or danger or (so far as can be avoided) any interruption impediment or delay to the safe passage and conduct of traffic over the railways or at to or from the stations sidings or works of the railway company:
- (8) If any damage injury danger interruption impediment or delay shall be caused by or be attributable to the Board's work or by or to the acts or defaults of the Board or their officers servants contractors or workmen or any other person employed in connection with the Board's work or by or to the failure of the Board's work (such damage injury danger interruption impediment or delay not being the result of inevitable accident) the Board shall indemnify and save harmless the railway company from all and any claims and demands which may be made upon the railway company in connection with such damage injury danger interruption impediment delay or failure and shall also make compensation to the railway company in respect of any damage loss or injury which they may sustain or any expense to which they may be put in connection with any such damage injury danger interruption impediment delay or failure and the amount of such compensation shall in case of difference be settled by arbitration:
- (9) The Board shall not without the consent in writing of the railway company under their common seal purchase or acquire under the powers of this Act

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any of the lands or property of the railway company for the purposes of the Board's work but the Board may acquire and the railway company shall if required grant to the Board an easement or right of constructing laying down maintaining repairing and renewing the Board's work in or through such lands and property and the sum to be paid for the acquisition of such easement or right shall be settled in the manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement Provided always that where the Board shall have acquired under the powers of this Act any such easement or right as aforesaid nothing in this Act shall prevent the railway company from using their lands and property as they may think fit subject to such reasonable protection for the Board's work as may be agreed or settled by arbitration:

- (10) The railway company if they so elect to do may themselves execute at the costs charges and expenses of the Board the Board's work affecting their railways bridges level-crossings lands works or property except the provision of pipes and laying and jointing the same which shall be done by the Board and such costs charges and expenses shall be deemed to include the reasonable cost of insurance against the payment of compensation to any workmen who may be injured or killed whilst employed by the railway company in and about the Board's work or their legal representatives or dependants:
- (11) If having regard to the proposed position of the Board's work in relation to the position of the works of the railway company it becomes reasonably necessary that any of the works of the railway company should be altered the railway company may execute the works reasonably necessary for such alteration and the reasonable costs of executing such works shall be repaid by the Board to the railway company:
- (12) Nothing in this Act contained shall enable the Board to deviate upwards from the levels as shown on the originally deposited sections under any land belonging to the railway company or to raise sink remove or otherwise alter the position of any railways sidings embankments bridges level-crossings stations or works of a similar character belonging to the railway company:
- (13) If by reason of the execution of the Board's work it shall become necessary to reconstruct alter

strengthen or in anywise interfere with the structure of any bridge or other work of the railway company such reconstruction alteration or strengthening shall be carried out by the railway company at such times and in such manner as they may reasonably think expedient or necessary and the reasonable cost thereof shall be borne by the Board:

- (14) The Board shall bear and on demand pay to the railway company affected by the Board's work all reasonable costs of the superintendence by the railway company of the Board's work and of watching lighting supporting and protecting the railways and works of the railway company with reference to and during the execution of the Board's work but such superintendence shall not relieve the Board from liability for any accidents which may be occasioned by or through any act or default of the Board or any contractor agent or workman or other person or persons employed in or about the execution of the Board's work:
- (15) Any additional expense which the railway company may reasonably incur in widening altering reconstructing repairing or maintaining in pursuance of any powers existing at the passing of this Act their railway or other works by reason of the existence of the Board's work upon across over or under the same in any case in which the railway company do not exercise the powers of subsection (5) of this section shall be paid by the Board:
- (16) The powers of section 22 (Power to divert streams &c.) of this Act shall not be exercised so as to damage or injuriously affect the railways or property of the railway company:
- (17) Any dispute or difference which may arise between the railway company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out by the Board or by the railway company shall (except as otherwise expressly provided by this section) be settled by arbitration.

51. The following provisions for the further protection of the Southern Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the company and the Board apply and have effect:—

For further protection of Southern Railway Company.

- (1) (a) The Board shall carry the Windsor railway of the company over Work No. 1 by this Act authorised where that work is intended to pass under the said

PART II.
—cont.

railway by means of a steel girder bridge of such strength and design as may be reasonably approved by the chief civil engineer of the company (in this section referred to as "the engineer");

(b) The abutments of the said bridge shall be constructed so as to extend between the existing railway boundary fence on each side of the railway;

(c) The works in connection with the bridge shall include a footpath level-crossing over the railway with gates on each side of the crossing for the use of the Board and their servants only;

(d) The said bridge and works in connection therewith shall become the property of the company and shall be maintained by them as part of their undertaking and the Board shall on the completion of the said bridge and works pay to the company such sum as may be agreed or determined by arbitration as representing the capitalised amount of the additional cost to the company of maintaining the said bridge and works by reason of their substitution for the existing formation of the railway and the provision of the said footpath:

(2) The provisions of section 50 (For protection of Southern and Great Western Railway Companies) of this Act shall apply to so much of Work No. 3 by this Act authorised as will be situate within a distance of twenty yards of the existing railway boundary fence on the northern side of the said railway as if the said Work No. 3 were included in the expression "the Board's work" referred to in that section:

(3) Such parts of Works Nos. 6 and 13 by this Act authorised as will pass under the said railway and be within the existing railway boundary fences shall be constructed of steel pipes embedded in and surrounded by concrete no part of which shall be less than three feet below the underside of the sleepers carrying the railway:

(4) (a) Work No. 7 by this Act authorised shall be constructed in such a position that no part thereof or its foundations shall be within a distance of three hundred and twenty feet from the northernmost running rail of the said railway as now existing measured in a straight line on a horizontal plane;

(b) The Board shall pay reasonable compensation to the company for any injury or damage to the said

railway or property or any interruption or delay to the safe passage and conduct of traffic thereon caused by reason of the construction or failure of Work No. 7 and shall indemnify the company in respect of any claim for injury loss damage interruption or delay caused by such construction or failure:

- (5) (a) In diverting under the powers of section 10 (Power to divert roads and footpaths) of this Act the footpaths traversing the lands respectively numbered on the originally deposited plans 9 in the parish of Wyrardisbury in the rural district of Eton and 29 29A 37 75 and 113A in the urban district of Staines the Board shall to the reasonable satisfaction of the engineer erect fencing between the said footpaths and the said railway on the railway side of the said footpaths where in their new position they will adjoin the railway;

(b) If before such diversion the company shall have provided unclimbable fencing between the said railway and any part of the said footpaths which adjoins the railway the fencing to be erected by the Board shall be of that type and if at any time after such diversion the company provide unclimbable fencing along any part of the said footpaths which has not been diverted by the Board the Board shall at the same time and at their expense substitute unclimbable fencing for the fencing previously erected by them;

(c) Any fencing so erected or provided by the Board shall be maintained by and at the expense of the company:

- (6) Any dispute or difference which may arise between the company and the Board with reference to the foregoing provisions of this section or in any way arising thereout or as to any works to be carried out by the Board or by the railway company shall be settled by arbitration:
- (7) (a) The Board shall not without the consent in writing of the company under their common seal exercise the powers of section 33 (Power to acquire additional lands) of this Act in respect of the estate and interest of the company in any land belonging to the company at the date of the passing of this Act but shall acquire the interest of the tenant of the land shown by red colour on the plan signed by Albert Endicott on behalf of the company and by Cecil Douglas

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—cont.

Shott on behalf of the Board (hereinafter called "the signed plan") being part of the lands described in sub-paragraph (b) of paragraph (D) of subsection (1) of that section;

(b) As soon as practicable after the acquisition of such interest the Board shall surrender the same to the company;

(c) The company shall forthwith on the passing of this Act determine the tenancy of the land shown by blue colour on the signed plan;

(d) As soon as practicable after the surrender by the Board to the company of the tenancy of the land shown by red colour and the termination by the company of the tenancy of the land shown by blue colour on the signed plan the company shall let the said lands coloured red and blue to the Board on a half-yearly tenancy at a total rent of twenty-four pounds per annum subject to such terms and conditions as may be agreed between the Board and the company or determined by arbitration Provided that—

(i) such terms and conditions shall include a power for the company at any time to resume possession of the lands or any parts thereof for railway purposes on giving to the Board one month's previous notice in writing;

(ii) if the company exercise the power referred to in paragraph (i) of this proviso with reference to the whole of the said lands the said rent shall cease to be payable as from the date on which the company resume possession of the said lands; and

(iii) if the company exercise the said power with reference to a part only of the said lands the said rent shall be proportionately reduced (on an acreage basis) as from the date on which the company resume possession of the said part;

(e) As from any determination or expiration of the said half-yearly tenancy of the said lands or any part thereof the following provisions shall apply in relation to the whole or any part thereof which for the time being is not held by the Board as lessees or tenants of the company:—

(i) the company shall from time to time give to the Board notice in writing of any purpose or

altered purpose for which they propose to use the said lands or any part thereof;

(ii) if at any time within twenty-eight days after the receipt of any such notice the Board give to the company in writing a counter-notice intimating their objection to the user of the said lands or any part thereof for the purpose stated in the notice on the ground that such user would or might cause the risk of pollution of water which the Board are entitled to take or use or requiring the company to accept terms or conditions with reference to such user all matters of difference between the Board and the company arising out of the giving of any such notice and counter-notice shall be referred to and determined by an arbitrator whose decision shall be final and binding and pending such determination the company shall not use the said lands or any part thereof for the purpose stated in the notice given by them. Provided that the Board shall not be entitled to object to a proposal by the company to use the said lands or any part thereof for the execution of works in connection with the working of traffic on their railway but without prejudice to the right of the Board (subject to any reference to and determination by an arbitrator as hereinbefore mentioned) to require the acceptance by the company of terms or conditions with reference to such user;

(iii) the foregoing provisions of this paragraph shall apply to any lessee sub-lessee or occupier of the said lands or any part thereof (other than the Board) as if he had been named therein in addition to the company and shall be binding upon all successors in title of the company as owners for the time being of the said lands or any part thereof;

(f) The Board shall from time to time pay to the company such compensation as may be agreed between the Board and the company or determined by arbitration for any expense loss or injury (including diminution or loss of revenue) reasonably incurred by the company or suffered by the company by reason of any prohibition under this subsection of a proposed user of the said lands or any part thereof or the imposition of terms or conditions with reference to any such user.

PART II.
—cont.
For further
protection of
Great Western
Railway
Company.

52. The following provisions for the further protection of the Great Western Railway Company (in this section called "the company") shall unless otherwise agreed in writing between the company and the Board have effect (namely):—

- (1) The Board shall in constructing Work No. 6 (conduit No. 4) by this Act authorised lay and carry the said work for its entire length across the company's Staines branch railway between the boundary fences by means of a steel or iron pipe founded on and surrounded by portland cement concrete or enclosed in a subway to be constructed and maintained by the Board so that no part of such work shall be less than three feet below the level of the rails of the said railway at the point of crossing:
- (2) Work No. 7 by this Act authorised shall be constructed in such a position that no part thereof or its foundations shall be within a distance of two hundred feet of the westernmost running rail of the said railway as now existing measured in a straight line on a horizontal plane normal to the line of the railway:
- (3) The Board shall pay reasonable compensation to the company for any injury or damage to the said railway or property or any interruption or delay to the safe passage and conduct of traffic thereon caused by reason of the construction or the failure of such work and shall indemnify the company in respect of any claim for injury loss damage interruption or delay caused by such construction or failure:
- (4) (a) Where any part of Work No. 10 (cut No. 2) by this Act authorised shall be situate at a less distance than ten feet from the western boundary fence of the said railway the Board shall construct a retaining wall on the eastern side of such work of a design to be approved by the chief engineer of the company and the top of the face of such retaining wall shall not at any point be nearer than five feet to the said boundary fence;

(b) Except where a retaining wall is constructed as provided for in the preceding paragraph of this subsection the said work shall be executed and maintained in such manner that no part thereof shall be situate at a less distance than ten feet from the said boundary fence and the slope of the eastern side of such work shall at no point be steeper than one and a half horizontal to one vertical:

- (5) Any alterations to the level of the bed of the existing watercourses on the company's property which may be necessary to connect such watercourses to the river Wyrardisbury as diverted under the powers of this Act shall be carried out at the cost of the Board:
- (6) The Board shall at their own expense construct a bridge over the diverted part of the river Wyrardisbury in the enclosure numbered 109 in the urban district of Staines on the originally deposited plans of a width of thirteen feet or such less width as may be agreed by the chief engineer of the company but the Board shall not be under any liability to maintain or keep in repair the said bridge:
- (7) The Board shall on the completion of the said diversion of the river Wyrardisbury remove the existing bridge over that river situate in the enclosure numbered 112 in the urban district of Staines on the originally deposited plans which gives access to the company's Yeoveney halt from Moor Lane and shall fill in and make up the bed of the said river at the site of the said bridge to the level of the ground on either side of the bridge so as to afford proper access to the company's said halt from Moor Lane as diverted in accordance with the provisions of this Act:
- (8) Any dispute or difference which may arise between the company and the Board with reference to the foregoing provisions of this section or in any way arising thereout or as to any works to be carried out by the Board or by the company shall be settled by arbitration.

53. Notwithstanding anything contained in this Act the following provisions for the protection of William Nash Limited of Cray Valley Paper Mills Saint Paul's Cray in the county of Kent (in this section called "the company") (being the provisions which were agreed between the Board and the company in the special circumstances prevailing at the time of and in connection with the authorisation by the order made by the Minister of Health and dated the twenty-ninth day of July one thousand nine hundred and forty-two of the construction of the borehole as defined in this section) shall unless otherwise agreed between the company and the Board apply and have effect—

(1) In this section—

(a) "the company's well" means the six wells at the said Cray Valley paper mills used by the company for the purposes of their business;

PART II.
—cont.

(b) “ the standard quantity ” means one million two hundred and fifty thousand gallons of water per day of twenty-four hours (reckoned from midnight to midnight); and

(c) “ the borehole ” means the borehole numbered (i) in section 6 (Confirmation of existing waterworks) of this Act:

(2) If on any day after the date on which the Board commence pumping at the borehole (of which date the Board shall give notice in writing to the company) the daily quantity of water obtainable from the company’s well is from any cause other than—

(a) war damage (as defined in the War Damage Act 1941); or

(b) any wilful or negligent act or default of the company or their officers servants agents or contractors;

reduced below the standard quantity to such an extent as to be insufficient for the requirements of the company at the time such reduction happens for the purposes of their business (the extent of such requirements to be determined at such time by the company in their sole discretion) then forthwith upon the receipt from the company of notice in writing requesting them so to do the Board shall at their option either—

(i) discontinue pumping at the borehole so long as such reduction as aforesaid in the quantity of water obtainable from the company’s well on any day shall continue or reduce the pumping at the borehole to such an extent that there shall be no such reduction in the quantity of water so obtainable (according as the circumstances may require); or

(ii) commence to supply to the company such quantity of water of a quality suitable for the company’s business as the company may from time to time require not exceeding such quantity as (when added to the available output of water (if any) obtainable from the company’s well at the time such request is made) will amount to the standard quantity or to such less quantity as shall from time to time suffice for the purposes of the company’s business; or

(iii) by deepening or otherwise altering the company’s well or constructing adits thereto or by altering the existing or installing new apparatus

4 & 5 Geo. 6.
c. 12.

thereat increase the output of water from the company's well so as to make good such reduction as aforesaid:

- (3) (a) In the event of the Board electing to adopt the alternative (ii) mentioned in subsection (2) of this section the quantity of water supplied to the company shall be measured by a meter to be provided and installed by the Board and the Board shall continue to supply to the Company such quantity of water as is mentioned in that alternative so long as such reduction as aforesaid in the quantity of water obtainable from the company's well shall continue;

(b) In the event of the Board electing to adopt the alternative (iii) mentioned in the said subsection (2) they shall repay to the company any additional cost to the company of pumping at the company's well resulting from the execution of the works or operations referred to in that alternative and shall (if so required by the company) supply to the company throughout the period occupied by such execution such quantity of water (of such suitable quality as aforesaid) as is referred to in the said alternative (ii) to be measured by a meter to be provided and installed by the Board:

- (4) If at any time or times it shall be agreed between the Board and the company or determined by arbitration as hereinafter provided that any such reduction as aforesaid in the quantity of water obtainable from the company's well was not caused by the pumping of water at the borehole the obligations of the Board under the foregoing provisions of this section shall cease and determine as from the date of such agreement or determination and—

(a) in the event of the Board having commenced to give effect to the alternative (i) or the alternative (ii) mentioned in subsection (2) of this section they shall cease as from the said date to be under any obligation either to discontinue or reduce their pumping at the borehole or to furnish such supply of water to the company as aforesaid (as the case may be);

(b) in the event of the Board having commenced to give effect to the said alternative (ii) the company shall pay to the Board for all water supplied to them by the Board in accordance with that alternative (whether before or after the date of such agreement or determination) such price as shall be agreed between the Board and the company or

PART II.
—cont.

settled by arbitration as hereinafter provided and shall also repay to the Board the cost reasonably incurred by them in the provision and installation of the meter referred to in subsection (3) of this section;

(c) in the event of the Board having commenced to give effect to the alternative (iii) mentioned in subsection (2) of this section the company shall repay to the Board the cost reasonably incurred by them in the provision and installation of a meter for measuring water supplied by the Board during the period of the execution of any such works or operations as are referred to in that alternative and shall also pay such price as aforesaid for water so supplied;

but unless it shall be so agreed or determined as aforesaid the Board shall themselves bear the expense of complying with their obligations under subsections (2) and (3) of this section:

- (5) The Board may instal in the company's well such apparatus (if any) as the Board may decide to instal therein and as may be reasonably approved by the company for the purpose of measuring the quantity of water from time to time obtainable from the company's well which apparatus and any records kept by the company of such quantity of water shall be open to inspection by the officials of the Board at all reasonable times:
- (6) The company shall afford to the Board free of charge all reasonable facilities for the execution of works or operations or the installation and inspection of meters or apparatus under and in accordance with the provisions of this section:
- (7) The company shall at all times keep and (whenever requested by the Board so to do) produce to the Board or any official thereof producing the authority of the Board such records (to be obtained by means of any apparatus installed by the Board as aforesaid) as the Board may reasonably require to enable them to determine the water levels in the company's well and the extent of any reduction in the quantity of water obtainable from the company's well for which purposes the readings of any such apparatus installed by the Board as aforesaid shall be prima facie evidence:
- (8) The company shall have the right at all reasonable times to inspect any gauge or meter at the borehole

or the said Work No. 15 and any records of any such gauge or meter:

PART II.
—cont.

- (9) If any dispute or difference shall arise between the Board and the company with regard to any of the provisions of this section such dispute or difference shall be referred to and determined by an arbitrator.

54. Notwithstanding anything contained in this Act the following provisions for the protection of Vegetable Parchment Mills (Delcroix) Limited (in this section referred to as "the company") shall unless otherwise agreed between the company and the Board apply and have effect:—

For protection
of Vegetable
Parchment
Mills
(Delcroix)
Limited.

The provisions of subsections (2) to (9) of section 53 (For the protection of William Nash Limited) of this Act shall extend and apply for the protection of the company as if those subsections were re-enacted in this section. Provided that for the purposes of this section—

- (a) the expression "the company's well" in the said subsections means the three wells at the company's works at St. Mary Cray in the urban district of Orpington in the county of Kent used by the company for the purposes of their business;
- (b) "the standard quantity" in the said subsections means one million gallons per day of twenty-four hours (reckoned from midnight to midnight); and
- (c) "the borehole" in the said subsections means the borehole numbered (1) in section 6 (Confirmation of existing waterworks) of this Act.

55. Notwithstanding anything contained in this Act the following provisions for the protection of Coates Brothers and Company Limited (in this section referred to as "the company") shall unless otherwise agreed between the company and the Board apply and have effect:—

For protection
of Coates
Brothers and
Company
Limited.

The provisions of subsections (2) to (9) of section 53 (For the protection of William Nash Limited) of this Act shall extend and apply for the protection of the company as if those subsections were re-enacted in this section. Provided that for the purposes of this section—

- (a) the expression "the company's well" in those subsections means the well at the company's factory at St. Mary Cray in the urban district of Orpington in the county of Kent used by the company for the purposes of their business;
- (b) "the standard quantity" in those subsections means forty thousand gallons per day of twenty-four hours (reckoned from midnight to midnight); and

PART II.
—cont.

(c) "the borehole" in those subsections means the borehole numbered (1) in section 6 (Confirmation of existing waterworks) of this Act.

Confirmation
of scheduled
scheme.

56.—(1) The scheme of which a copy is set out in the Second Schedule to this Act is hereby confirmed and made binding upon the Board and the Ballast Sand and Allie Trades Association (hereinafter referred to as "the association") and the members of the association named in the appendix to the said scheme and effect may and shall be given thereto accordingly subject to such additions or alterations (if any) as may be agreed in writing between the Board and the association and as do not prejudicially affect the interests of any person other than the Board and the association and the members of the association.

(2) The plan referred to in the appendix to the said scheme has for purposes of identification been signed in duplicate by the right honourable the Lord Chesham, the chairman of the committee of the House of Lords to whom the Bill for this Act was referred and the plans so signed have been deposited with the Board and the association respectively.

For protection
of Hall & Co.
Limited.

57. For the protection of Hall and Co. Limited (in this section referred to as "the company") the following provisions shall notwithstanding anything in this Act or shown on the originally deposited plans and sections and unless otherwise agreed in writing between the Board and the company apply and have effect with reference to the exercise by the Board of the powers of this Act (that is to say):—

(1) The Board shall not except by agreement with the company enter upon purchase take or use any lands now belonging to the company other than a portion of the lands of the company in the urban district of Staines comprising a strip (in this section referred to as "the defined strip") bounded on the south side by the southward limit of deviation shown on the originally deposited plans for Work No. 6 (conduit No. 4) by this Act authorised so far as the line of such limit of deviation is situate on the said lands of the company and extending northward from the said line to such uniform distance not exceeding one hundred and fifty feet as may be determined by the Board and except by agreement with the company the Board shall not enter upon purchase take or use the defined strip except in accordance with the provisions of this section and subject to compliance with the conditions and obligations thereby imposed:

(2) Within three months from the passing of this Act the Board shall serve upon the company notice to

treat under section 18 of the Lands Clauses Consolidation Act 1845 for the purchase of the defined strip:

PART II.
—cont.

- (3) In constructing the line of pipes forming such part of the said Work No. 6 as will be situate within the area of the said lands now belonging to the company the Board shall construct the same so that it shall be partly in the form of a syphon of which the horizontal portion shall extend continuously for a distance of not less than forty feet within the defined strip from a point therein to be determined by agreement between the Board and the company or failing such agreement by arbitration and so that the top of the concrete surrounding the pipes shall throughout the said horizontal portion of the syphon be at such level above ordnance datum as shall be so determined by agreement or arbitration. Before determination of the said point the Board shall at their own expense and without interference with or injury to the land of the company adjoining the defined strip take any necessary steps for the purpose of ascertaining the nature of the ground:
- (4) The Board in constructing the said syphon shall construct suitable guards or fenders along the whole length and width thereof in order to protect the syphon against injury:
- (5) On the conveyance to the Board of the defined strip the Board shall grant or there shall be reserved to the company an easement or right to enable a loaded pontoon or barge or a loaded pontoon and barge at any time to pass freely from the land of the company on either side of the defined strip to the land of the company on the other side thereof across any part of the horizontal portion of the syphon and to enable the company if they should require to excavate the gravel under any of their land adjoining the defined strip before the Board have commenced the construction of the said Work No. 6 within the defined strip to make and maintain a sufficient passageway through the defined strip by which until completion of the syphon a loaded pontoon or barge or a loaded pontoon and barge shall be able at any time to pass freely from the land of the company on either side of the defined strip to the land of the company on the other side thereof:
- (6) All surplus clean material excavated by the Board within the defined strip shall be deposited by the

PART II.
—cont.

Board on land of the company adjacent to the defined strip in such position as may be requested from time to time by the company:

- (7) Notwithstanding anything in section 24 (Temporary discharge of water into streams) of this Act all water flowing into any excavation made by the Board within the defined strip during the construction of the said Work No. 6 shall be discharged by the Board into the lands of the company adjoining the defined strip on the northern side thereof:
- (8) The Board shall not stop up or obstruct any existing path or cart-track on the defined strip and they shall allow the company and their servants with or without vehicles not exceeding (together with any load therein) fifteen tons in weight at all times to pass over the defined strip at such places as shall from time to time be determined by agreement between the Board and the company or failing such agreement by arbitration:
- (9) The company in excavating the ground on their land adjoining the defined strip may take appropriate and carry away any material that falls from the defined strip into their workings:
- (10) When all gravel and ballast has been worked out from the lands of the company adjoining the defined strip the company shall fill in free of cost to the Board the ground over the syphon with suitable material as and when such material becomes available:
- (11) On the conveyance to the Board of the defined strip the Board shall grant or there shall be reserved to the company an easement or right to lay out across the defined strip (after the construction therein of the line of pipes and the filling in of the ground over the same) any streets the company may think fit in accordance with the local byelaws relating to new streets and buildings and to maintain any streets so laid out and (if the company think fit) they may dedicate the same as highways or allow them to become public highways repairable by the inhabitants at large or subject to any rights of way Provided that such easement or right shall be subject to the condition that if in connection with the laying out of any such street the Board should reasonably require any alteration of the position or depth of any of their mains pipes cables or other apparatus therein or thereunder the company shall bear the

cost properly incurred by the Board in carrying out the necessary work for that purpose:

PART II.
—cont.

- (12) If any question or dispute shall arise between the Board and the company with respect to anything contained in or provided for under this section the same shall be determined by arbitration.

58. Notwithstanding anything contained in this Act the following provisions for the protection of Ernest James Wythes or other the owner or owners for the time being of the Copped Hall Estate in the county of Essex (hereinafter in this section called "the owner" and "the estate" respectively) shall except so far as otherwise agreed between the owner and the Board apply and have effect (that is to say):—

For protection
of Ernest
James
Wythes.

The provisions of section 27 (For protection of local sources of supply) of this Act shall extend and apply for the protection of the owner and of the estate as if the said provisions were with the necessary modifications re-enacted in this section. Provided that for the purposes of such application the said section 27 shall be read and have effect as if—

- (a) any service reservoir and works connected therewith constructed by the Board on the lands referred to in subparagraph (f) of paragraph (B) of subsection (1) of section 33 (Power to acquire additional lands) of this Act were one of the authorised works referred to in that section; and
- (b) the words "construction of the authorised work" were substituted in subsection (2) of the said section for the words "pumping at that work."

59. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of Westminster Bank Limited the Honourable Evelyn FitzGerald C.B. and Cecil James Longcroft (executors of the will of Sir Philip Sassoon baronet deceased) or other the owner or owners for the time being of the Trent Park Estate (all of whom are in this section included in the expression "the owners") shall except so far as otherwise agreed between the owners and the Board apply and have effect:—

For protection
of Trent Park
Estate.

- (1) In this section—

"the estate" means the Trent Park Estate situate in the urban district of Enfield and the borough of Southgate in the county of Middlesex;

"the said lands" means the lands in the urban district of Enfield shown on the originally deposited plans and thereon numbered 1 and 2;

PART II.
—cont.

“ the reservoir ” means the service reservoir for the construction of which the said lands are by this Act authorised to be acquired by the Board:

- (2) The Board shall not use the said lands or any part thereof except for the purposes of the reservoir and a water tower and works ancillary thereto:
- (3) Before commencing the construction of the reservoir the Board shall submit to the owners plans and elevations showing the site design and external appearance of the reservoir and any water tower or other works to be constructed wholly or partly above ground on the said lands and the reservoir water tower and works shall be constructed only in accordance with such particulars as to the external appearance thereof as may be reasonably approved by the owners or in case of difference determined by arbitration and shall be maintained in accordance with those particulars. Provided that if the owners do not intimate their disapproval of the said particulars within one month from the date of the submission to them of the said plans and elevations they shall be deemed to have approved thereof:
- (4) The Board shall take all reasonable steps to preserve and when necessary renew the trees on the said lands except such of them as are necessarily demolished to enable the reservoir water tower and other works to be constructed and in particular the Board shall preserve and when necessary renew to the reasonable satisfaction of the owners the belt of trees situate on the lands numbered 1 on the originally deposited plans except so much thereof as may have to be demolished to enable the Board to make a road not exceeding twenty feet in width for the purpose of providing access to the reservoir from Cockfosters Road:
- (5) Upon the completion of the reservoir the Board shall provide and thereafter maintain to the reasonable satisfaction of the owners a belt of trees along the southerly side of the said lands:
- (6) The Board shall during and at all times after the construction of the reservoir and other works take all reasonable means to prevent trespass on the estate by persons in their employment or in the employment of their contractors or sub-contractors and the Board shall be responsible for any damage to the estate which may be done by such persons:

- (7) Should it be necessary to use any pumping apparatus upon the said lands such apparatus shall be operated by electricity and so as to cause as little noise as is reasonably practicable:
- (8) No posts shall be placed in the said lands and no electric lines or cables shall be placed thereon above ground:
- (9) Before disposing of the said lands or any part thereof the Board shall first offer to sell the same to the owner for the time being of the estate and the provisions of sections 128 to 131 of the Lands Clauses Consolidation Act 1845 shall apply thereto and for that purpose shall be incorporated with this Act:
- (10) The powers contained in the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof shall not be exercised on any part of the Estate:
- (11) Any question (other than a question to which the provisions of the Lands Clauses Acts apply) which may arise between the Board and the owners under this section shall be determined by arbitration.

60.—(1) The Board shall not under the powers of this Act purchase any part of the lands in the metropolitan borough of Woolwich in the county of London comprising part of the enclosure No. 153 on the 1/2500 Ordnance map London sheet XI. 5 (edition of 1916) and known as Clam Fields forming part of Bostall Heath vested in the London County Council (in this section referred to as "the council") but the Board may purchase and take and the council shall if required by the Board grant an easement or right in under or over the said lands on such terms and conditions as may be agreed between the Board and the council or as failing agreement shall be determined by an arbitrator to be agreed upon between the Board and the council or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Chartered Surveyors' Institution and the provisions of the Arbitration Acts 1889 to 1934 shall apply to such determination.

As to Clam
Fields.

(2) Such easement or right as aforesaid shall be granted to the Board in under or over Clam Fields for the purposes of such works as are mentioned in paragraph (B) of subsection (1) of section 33 (Power to acquire additional lands) of this Act and the council may receive the purchase money or compensation to be paid by the Board to the council for

PART II.
—cont.

such easement or right and give the Board a good and valid discharge therefor.

For protection
of Middlesex
County
Council.

61. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the county council of the administrative county of Middlesex (in this section referred to as "the council") shall except so far as may be otherwise agreed in writing between the Board and the council apply and have effect:—

(1) In this section—

"the reservoir" means reservoir No. 2 authorised by this Act; and

"the proposed road" means the road to be constructed by the council referred to in subsection (4) of this section:

(2) At the request in writing of the council the Board shall acquire so much of the lands shown on the originally deposited plans as may be necessary to enable them to comply with the provisions of this section:

(3) Before commencing the construction of the bank forming part of the reservoir on the easterly side thereof the Board shall divert so much of the Wyrardisbury River as is situate between the bridge carrying Horton Road over the said river and a point five hundred yards or thereabouts measured upstream from the bridge carrying the Staines branch of the Great Western Railway over the Windsor branch of the Southern Railway and the diverted river shall be in a situation reasonably approved by the council and as near to the Great Western Railway as reasonably practicable:

(4) (a) At the request in writing of the council the Board shall convey to the council the land required by them for the construction of a road one hundred and twenty feet in width to be situate between the reservoir and the Wyrardisbury River as diverted together with sufficient land for providing slopes to support the road on either side:

Provided that when the reservoir is constructed the Board shall be at liberty (if they think fit) to cover over the slope on the westerly side of the proposed road so that the land between the reservoir and that road may be as nearly as may be level with that road;

(b) The said land shall be so conveyed free from encumbrances so far as the Board shall be able so to convey the same:

- (5) (a) If the Board commence the construction of the reservoir before the construction of the proposed road is commenced the Board before commencing the construction of the reservoir shall divert Moor Lane in the urban district of Staines (being the road numbered 78 in section 10 (Power to divert roads and footpaths) of this Act) in a manner and with materials reasonably approved by the Staines Urban District Council and subject to the following conditions:—
- (i) the diverted road shall be situate between the reservoir and the Wyrardisbury River as diverted;
 - (ii) the width of the diverted road shall be not less than forty feet;
 - (iii) the diverted road shall be constructed in such a position and manner that it can be widened by the council to a width to form the proposed road;
- (b) The council shall pay to the Board the amount by which the cost incurred by the Board in diverting Moor Lane in accordance with the provisions of this subsection exceeds the cost which the Board would have incurred in effecting such diversion in accordance with the assumption mentioned in subsection (6) of this section;
- (c) Any difference between the council and the Board as to the amount so to be paid by the council shall be determined by arbitration:
- (6) The price to be paid by the council to the Board for the land referred to in subsection (4) of this section shall be agreed or determined by arbitration and if such price is determined before the diversion of Moor Lane there shall in the determination thereof be deducted such a sum as would have been incurred by the Board in the acquisition of land for the diversion of Moor Lane and in the diversion thereof to a site on the easterly side of the reservoir on the assumption that the diverted road would have had a width of forty feet between the boundary fences thereof and a carriageway of a width of twenty feet and that such carriageway would have been constructed to the reasonable satisfaction of the council with hard core of twelve inches and a surface consisting of three inches of tar macadam:
- (7) During and for the purposes of the construction by the council of the proposed road the council shall be

PART II.
—cont.

entitled to use a strip of land of a width of thirty feet adjoining the western side thereof:

- (8) The council shall within three months from the receipt from the Board of a notice in writing requesting them so to do and to the reasonable satisfaction of the Board erect a fence on the westerly side of the proposed road and the Board shall provide the materials required for that purpose and shall maintain the fence:
- (9) If the council so require the Board shall sell and convey to them for use as a public walk the land situate between the proposed road and the Wyrardisbury River as diverted for such consideration and upon such terms as may be agreed between the Board and the council or determined by arbitration:
- (10) For the purpose of constructing the proposed road the council shall be entitled to use so much of the material on the site of the reservoir or excavated in its construction as the Board may reasonably approve without derogating from any obligation to any other party to which they may be subject under any provision of this Act:
- (11) When the proposed road has been constructed the Board notwithstanding the provisions of the Restriction of Ribbon Development Act 1935 shall be entitled to have reasonable access thereto:
- (12) Work No. 6 authorised by this Act if constructed in the land in the urban district of Staines numbered 163 on the originally deposited plans shall be constructed in such position and at such depth within the limits of deviation as shall be shown on a plan and section to be reasonably approved by the council;
- (13) Work No. 12 authorised by this Act shall be constructed through the land in the urban district of Sunbury-on-Thames numbered 17 on the originally deposited plans in such position and at such depth within the limits of deviation as shall be shown on a plan and section to be reasonably approved by the council:
- (14) The council shall be at liberty to place and maintain in the land referred to in subsections (12) and (13) of this section or in either of those subsections such drains pipes and wires as they may reasonably require for the purposes of any building for the time being belonging to them and erected on a site adjoining such land and the council their officers servants

25 & 26 Geo. 5.
c. 47.

and agents and all persons lawfully going to or from any such building or site shall be entitled to pass and repass with or without vehicles over any such land. Provided that the council shall not in exercising the powers of this subsection interfere in any way with or cause any damage or injury to any main pipe work or apparatus of the Board and if any such damage or injury shall result from the exercise of the said powers the council shall pay to the Board such compensation as may be agreed between them or as (failing such agreement) shall be determined by arbitration:

(15) The Board shall acquire only so much of the land in the urban district of Sunbury-on-Thames numbered 28 on the originally deposited plans as may be agreed between the Board and the council or determined by arbitration:

(16) Any question which may arise between the council and the Board under the provisions of this section shall be determined by arbitration.

62. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the tenants hereinafter mentioned shall apply and have effect except in so far as may be otherwise agreed in writing between the Board and any such tenant with the approval of the council:—

For protection
of tenants of
Middlesex
small holdings.

(1) The tenants hereinbefore referred to are the tenants of the premises in the urban district of Staines numbered 1 2 2A 3 20 21 24 26-34 inclusive 37-42 inclusive 44-51 inclusive 53-69 inclusive 71-73 inclusive 76 and 93-108 inclusive on the deposited plans and of the premises in the parish of Wyrardisbury in the rural district of Eton in the county of Buckingham numbered 9 9A 10 11 12 14-17 inclusive 19 and 20 on the said plans being small holdings or parts of small holdings comprised in the Yeoveney Manor Estate of the council and in this section—

(a) each of these tenants is referred to as a “tenant”;

(b) each of the said small holdings is referred to as a “holding” and where part only of a holding is included in the lands numbered as aforesaid on the deposited plans the expression “holding” includes that part;

(c) “the council” means the Middlesex County Council; and

PART II.

—cont.

13 & 14 Geo. 5.
c. 9.

(d) "the Act of 1923" means the Agricultural Holdings Act 1923 as amended by subsequent enactments:

- (2) The Board shall not acquire the interest of a tenant in a holding or require him to give up possession thereof or terminate the tenancy by a notice to quit except upon giving to the tenant twelve months' notice expiring on the twenty-ninth day of September in the year one thousand nine hundred and forty-seven or in any subsequent year:
- (3) The Board shall not acquire the interest of a tenant in part only of the holding of a tenant or require him to give up possession of part only thereof if the tenant with the approval of the council is willing and able to part with the whole thereof:
- (4) A tenant whose interest in a holding is acquired by the Board or who is required by them to give up possession thereof or whose tenancy is terminated by the Board by a notice to quit shall be entitled to receive from the Board such compensation as he would have been entitled to receive from the council under his agreement of tenancy and to receive compensation from the Board in accordance with the Act of 1923 subject to the following modifications:—
 - (a) he shall be entitled to compensation for any improvement comprised in Part I of the First Schedule to the Act of 1923 executed before the passing of this Act whether or not the council had previously consented to the execution of the improvement;
 - (b) if he proves that the value of the holding has been increased during his tenancy by the continuous adoption of a standard of farming or a system of farming which has been more beneficial to the holding than the standard or system (if any) required by his contract of tenancy he shall be entitled to compensation under section 9 of the Act of 1923 whether or not the record mentioned in proviso (a) to that section had been made provided that the adoption of such standard or system took place before the passing of this Act:
- (5) Any question or difference which may arise between the Board and a tenant under this section shall be determined by arbitration in accordance with the provisions contained in the Act of 1923.

PART II.

—cont.

For protection
of Kent
County
Council.

63. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection of the county council of the administrative county of Kent (in this section called "the county council") shall apply and have effect unless otherwise agreed in writing between the county council and the Board (that is to say):—

- (1) In this section "the signed plan" means the plan which has been signed in duplicate by Cecil Douglas Shott on behalf of the Board and by Francis William Greig on behalf of the county council one copy of which has been retained by the Board and the other by the county council:
- (2) If the Board shall acquire the lands or any part thereof numbered 261 in the parish of Sundridge on the 1/2500 Ordnance map Kent sheet XXXIX. 7 (revision of 1937) coloured red on the signed plan the Board shall if the county council shall at any time or times desire to acquire the said lands or any part thereof for the purpose of widening the road shown on the signed plan on the western side thereof and of such desire shall give notice in writing to the Board transfer to the county council the said lands or such part thereof to which the said notice relates upon such terms as may be agreed between the Board and the county council or as failing agreement may be determined by arbitration under and in accordance with the provisions of the Lands Clauses Acts.

64. Notwithstanding anything contained in this Act the following provisions for the protection of the sewers and drains of the respective county councils of the administrative counties of Essex Hertfordshire Kent Middlesex and Surrey (each of which is in this section called "the county council") shall unless otherwise agreed in writing between the Board and the county council have effect (namely):—

For protection
of sewers and
drains of Essex
Hertfordshire
Kent
Middlesex and
Surrey county
councils.

- (1) The Board shall not commence any part of the new works (which expression for the purposes of this section shall include the works authorised by section 9 (Subsidiary works) of this Act) which will or may pass over under or by the side of or so as to interfere with any sewer or drain of the county council until they shall have given to the county council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the office of the county council with plans and sections thereof as hereinafter defined and until the county council shall have signified their approval

PART II.
—cont.

of the same unless the county council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid and the Board shall comply with and conform to all such reasonable directions of the county council in the execution of the said part of the new works as shall be reasonably necessary to secure the sewers and drains of the county council against interference or risk of damage and so as not to obstruct any existing access to the said sewers and drains and shall provide by altered or substituted works in such manner as the county council shall reasonably require for the proper protection of and for preventing injury or impediment to any such sewer or drain by reason of the new works or any part thereof and shall save harmless the county council against all expenses to be occasioned thereby and all such altered or substituted works shall be executed under the supervision (if given) and to the reasonable satisfaction of the county council at the costs charges and expenses in all respects of the Board and all reasonable costs charges and expenses (other than salaries or wages of regular officials or servants of the county council) to which the county council may be put by reason of such works of the Board whether in the execution of works supervision or otherwise shall be paid to the county council by the Board on demand and when any such altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Board under the provisions of this section the same shall thereafter be as fully and completely under the direction jurisdiction and control of the county council as any sewers drains or works now or hereafter may be And nothing in this Act shall extend to prejudice diminish alter or take away any of the rights powers or authorities vested or to be vested in the county council in relation to sewers and drains but all such rights powers and authorities shall be as valid and effectual as if this Act had not been passed:

- (2) As regards any of the new works the county council may require the Board in constructing such works to make any reasonable deviation (within the limits of deviation of such works as shown on the originally deposited plans) from the line or levels shown upon the plan or section submitted under subsection (1) of this section for the purpose of avoiding

injury or risk of injury to the sewers and drains of the county council and the Board shall in constructing such works deviate accordingly :

- (3) It shall not be lawful for the Board in the exercise of the powers of this Act to remove any soil or material from under any highway in the county affected except such as must be excavated in the carrying out of the works or to make any trial boring so as to interfere with any sewer or drain of the county council :
- (4) The plans to be submitted to the county council for the purposes of this section shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the level at which the said works are proposed to be constructed and shall accurately describe the position of all sewers and drains of the county council within the limits of deviation of such works as shown on the originally deposited plans (for which purpose the county council shall allow the Board access to plans in their possession and to any sewers and drains of the county council in order to enable the Board to obtain reliable information) and shall comprise detailed drawings of every alteration which the Board may propose to make in any such sewer or drain :
- (5) The county council may require such modifications to be made in the said plans drawings sections and particulars as may be reasonably necessary to secure their drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers and drains :
- (6) The Board shall be liable to make good all injury or damage caused by or resulting from any of their works or operations to any sewers drains or works vested in the county council and the county council shall from time to time be entitled to recover the amount thereof from the Board in any court of competent jurisdiction :
- (7) The approval by the county council of any plans or the superintendence by the county council of any work under the provisions of this section shall not exonerate the Board from any liability or affect any claim for damages under this section or otherwise :
- (8) If the Board in the construction of the new works alter the position of any sewer or drain of the county

PART II.
—cont.

council or substitute a new sewer or drain for any such sewer or drain the Board shall—

(a) from time to time pay to the county council any additional cost to which the county council may be put in the maintenance management or renewal of such altered or substituted sewer or drain which may be necessary in consequence of the construction of the new works; and

(b) give to the county council full free and uninterrupted access at all times to such altered or substituted sewer or drain and every reasonable facility for the inspection maintenance alteration and repair thereof.

For protection
of Essex
Hertfordshire
Kent
Middlesex and
Surrey county
councils.

65. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the county councils of the respective administrative counties of Essex Hertfordshire Kent Middlesex and Surrey (each of which is in this section referred to as “the county council”) shall unless otherwise agreed in writing between the Board and the county council have effect (that is to say):—

- (1) All works of the Board shall be so executed as not to stop except to the extent authorised by this Act nor unreasonably to impede or interfere with the traffic on any road or bridge vested in the county council (in this section respectively referred to as a “county road” and a “county bridge”) or the approaches to such bridge and the Board shall not without the consent of the county council (which consent shall not be unreasonably withheld) open or break up at any one time a greater continuous length than one hundred and fifty yards of any county road or leave an interval of less than one hundred and twenty yards between any two places at which the Board may open or break up such county road:
- (2) All lines of pipes discharge pipes posts wires conductors or other works (in this section referred to as “apparatus”) of the Board (other than replacements of existing apparatus in the same position as the apparatus replaced) to be laid along any county road shall be laid in such position in or at the side thereof as the county council in writing under the hand of the county engineer or county surveyor may reasonably direct:
- (3) Sections 30 and 31 of the Waterworks Clauses Act 1847 in their application to any works by this Act authorised so far as such works affect any county road or county bridge in the county affected shall

(except in cases of emergency arising from accidental leakage or burst in which cases notice shall be given as soon as possible) be read and construed as if the notice required by the said section 30 to be given were not less than seven days and as if every such notice were to be accompanied by the plan required by section 31 of the said Act which plan shall be on a sufficient scale and with sufficient sections to show clearly the proposed works:

- (4) The Board shall make full compensation to the county council for any subsidence of or damage to any property of the county council which may be caused by or in consequence of any act or default of the Board their contractors servants or agents and whether such subsidence or damage shall happen during the execution of the works authorised by this Act or at any time thereafter:
- (5) The filling in by the Board pursuant to section 32 of the Waterworks Clauses Act 1847 of any trenches excavated by them in any road vested in the county council shall be carried out to the reasonable satisfaction of the county council:
- (6) The Board shall be liable to pay and shall pay to the county council any damages penalties costs charges or expenses which may be recovered from the county council in respect of any injury loss or damages consequent upon or arising from the execution by the Board of any works under the authority of this Act (whether such injury or loss occurs during or at any time within two years after the completion of such execution).

66.—(1) If any difference arises at any time between the Board and the county council touching the following sections of this Act:—

Provisions relating to two preceding sections.

Section 64 (For protection of sewers and drains of Essex Hertfordshire Kent Middlesex and Surrey county councils); and

Section 65 (For protection of Essex Hertfordshire Kent Middlesex and Surrey county councils);

(which sections are hereinafter in this section referred to as "the two preceding sections") or anything done or not to be done thereunder such difference shall be settled by arbitration.

(2) The provisions of the two preceding sections shall be in addition to and (except so far as is therein expressly

PART II.
—cont.

provided) not in substitution for or derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the county council.

(3) In this section the expression "the county council" means in relation to either of the two preceding sections any of the county councils named in that section.

For further
protection of
Hertfordshire
County
Council.

67. Notwithstanding anything contained in this or in any other Act the Board shall not except with the consent of the county council of the administrative county of Hertford (in this section referred to as "the county council")—

- (a) erect or make or permit to be erected or made any building (other than boundary walls gates posts and fences) or permanent excavation (other than workings which do not pierce the surface of the land) on the lands situate respectively in the parishes of Great Amwell and Stanstead St. Margarets in the rural district of Ware in the said county and described in subparagraphs (a) (b) (c) and (d) of paragraph (C) of subsection (1) of section 33 (Power to acquire additional lands) of this Act nearer to the Lower Road Great Amwell or the Stanstead St. Margarets-Hoddesdon Road A.10 respectively than the proposed lines of road widening shown on the plans of the said lands respectively signed by Henry Francis Cronin on behalf of the Board and by Albert Ernest Prescott on behalf of the county council; or
- (b) construct form or lay out any means of access to or from the said lands from or to the said roads respectively except in such situations and of such dimensions as may be approved by the county council or as (failing such approval) shall be determined by arbitration:

Provided that nothing in this section shall affect any right of the Board to make any excavation for the purpose of laying making altering maintaining repairing or renewing any main pipe drain cable wire work or other apparatus at a depth to be agreed between the Board and the county council or failing agreement to be determined by arbitration.

For protection
of Staines
Urban District
Council.

68. Notwithstanding anything contained in this Act or shown on the originally deposited plans and sections the following provisions for the protection and benefit of the urban district council of Staines (in this section referred to

as "the council") shall apply and have effect unless otherwise agreed in writing between the Board and the council (that is to say):—

PART II.
—cont.

(1) The provisions of section 64 (For protection of sewers and drains of Essex Hertfordshire Kent Middlesex and Surrey county councils) of this Act shall extend and apply for the protection of the sewers and drains of the council as if:—

(a) the council were therein referred to instead of the respective county councils of the administrative counties of Essex Hertfordshire Kent Middlesex and Surrey; and

(b) the urban district of Staines were therein referred to instead of the said administrative counties or either of them:

(2) The Board shall to the reasonable satisfaction of the council construct before the expiration of six months from the date of the passing of this Act and thereafter maintain at such places (not exceeding six in number) adjacent to such of the new works and any subsidiary works in connection therewith as are to be constructed in the urban district of Staines (hereinafter referred to as "the said works") as may be determined by the council the apparatus necessary for the purpose of keeping proper records of the upper level of the subsoil water on the first day of every month after the date of such construction until five years after the completion of the construction of the said works or the expiration of the period prescribed for the completion thereof as the same may be from time to time extended whichever may be the earlier and such records and the said apparatus shall at all reasonable times be open to the inspection of any person authorised by the council to make such inspection. Provided that if any monthly record shows any substantial variation from the record of the last preceding month the Board shall cause such records to be kept at such more frequent intervals as the council may reasonably require:

(3) If at any time it appears from the records made in pursuance of subsection (2) of this section that the upper level of the subsoil water at any of the places therein referred to is higher after than before the construction of the said works and it is agreed between the council and the Board or in case of difference determined by an arbitrator that such rise in level has resulted (directly or indirectly) from the

PART II.
—cont.

construction of the said works and has caused or is likely to cause damage to property inconvenience to the public or flooding the Board shall to the reasonable satisfaction of the council construct and thereafter maintain and operate such works and apparatus as may be agreed between the Board and the council or determined by arbitration to be practicable for reducing the upper level of the subsoil water at such places to the level which was normal prior to the construction of the said works:

- (4) The Board shall from time to time pay to the council any additional expense which the council may reasonably incur in the construction operation and maintenance of any sewers in the easternmost branch of Hithermoor Road in the district of the council by reason or in consequence of the construction of the new works:
- (5) If any difference shall arise with respect to any matter under this section between the Board and the council the matter in difference shall be referred to and settled by arbitration.

For protection
of Slough
Corporation.

69. Notwithstanding anything contained in this Act or shown upon the originally deposited plans and sections the following provisions for the protection of the mayor aldermen and burgesses of the borough of Slough (hereinafter referred to as "the corporation") shall apply and have effect unless and except so far as may be otherwise agreed in writing between the Board and the corporation (that is to say):—

- (1) In this section "the signed map" means the map four copies of which have been signed by the right honourable the Lord Chesham the chairman of the committee of the House of Lords to which the Bill for this Act was referred of which map one copy has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons one with the town clerk of the borough of Slough and one with the clerk of the Board:
- (2) As soon as practicable (having regard to the availability of labour and materials and to the removal of restrictions) after the expiration of a period of two years from the date of the passing of this Act the Board shall (subject as hereinafter provided) to the reasonable approval of the corporation and through contractors to be approved by them and also in accordance with plans sections specifications and

particulars to be previously reasonably approved by them—

PART II.
—cont.

(a) commence the enlargement on land belonging to the corporation of the Cippenham sewage works of the corporation so as to provide additional capacity for the treatment of sewage therein equivalent to the total capacity of the Langley sewage works of the corporation (numbered on the originally deposited plans 2 in the borough of Slough) for which purpose the corporation shall render available to the Board the requisite land and grant to them all necessary facilities; and

(b) commence the construction of such sewers and other works (including a pumping station or pumping stations) as may be reasonably required by the corporation for the conveyance to the said Cippenham works of all sewage which at the present time is collected or flows from and which may in the future from time to time be collected or flow from the area coloured pink upon the signed map and which (in either case) could have been treated and dealt with at the said Langley works if the reservoir No. 1 (Work No. 4) by this Act authorised had not been constructed and those works had not therefore ceased to operate:

Provided that the corporation may (if they so determine and of such their determination give notice in writing to the Board at any time within the period of two years from the date of the passing of this Act) themselves construct the works referred to in paragraphs (a) and (b) of this subsection and in that event—

(i) the corporation shall commence such construction as soon as is reasonably practicable (having regard to the availability of labour and materials and to the removal of restrictions) and shall proceed continuously and with all practicable dispatch to complete the same;

(ii) the Board shall repay to the corporation on demand all reasonable cost and expense incurred by them in or in connection with the construction of such works and in or in connection with the acquisition of the land required for such construction:

(3) The works referred to in subsection (2) of this section shall be constructed and completed as expeditiously as is reasonably possible by the Board or the

PART II.
—cont.

- corporation (as the case may be) and the Langley sewage works of the corporation shall not be entered upon taken or used by the Board until the said works are completed and in use:
- (4) The Board shall indemnify the corporation from and against all claims for compensation damages loss costs or expenses in respect of any injury damage loss costs or expense which may be suffered or incurred (otherwise than owing to any default or negligence on the part of the corporation their contractors officers or agents or the servants of them or any of them) by the corporation themselves or by any owner of property or other person and which is due to or arises out of the construction of the works referred to in subsection (2) of this section or of any of such works:
 - (5) So soon as the works referred to in the said subsection (2) have been completed the Board shall pay to the corporation the sum of twenty-three thousand pounds such sum being the estimated capitalisation of the annual cost to the corporation of pumping to their Cippenham sewage works all or any of the sewage referred to in the said subsection (2) and shall also repay to the Corporation any other expenses which the corporation may reasonably incur by reason or in consequence of the execution by the Board of the powers of this Act:
 - (6) Nothing in this Act shall authorise the Board to sink or construct any wells adits or works for gathering underground water within the limits of the corporation for the supply of water or within a radius of five miles from any well or pumping station for the time being of the corporation:
 - (7) Any question arising between the Board and the corporation under the provisions of this section shall be referred to and determined by arbitration.

For protection
of Eton Rural
District
Council.

70. For the protection of the Eton Rural District Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the Board and the council have effect:—

- (1) The Board shall as soon as practicable after the completion of the purification works to be constructed by them on the lands described in subparagraph (a) of paragraph (A) of subsection (1) of section 33 (Power to acquire additional lands) of this Act plant and shall thereafter as and when necessary maintain and renew shrubs and trees on the eastern side of the Colnbrook-Horton road between the points

marked " A " and " B " shown on the plan signed by Henry Francis Cronin on behalf of the Board and Frank Swann on behalf of the council:

- (2) The said shrubs and trees shall be of such number and character and planted in such positions as may be agreed between the Board and the Council or (failing such agreement) as shall be determined by the Minister of Town and Country Planning on the application of either party after notice in writing to the other party:

Provided that the Board shall not be required to plant any trees or shrubs which would interfere with the efficient and proper working of the said purification works.

71. The following provisions for the protection of the authority as hereinafter defined shall unless otherwise agreed between the Board and the authority apply and have effect with respect to the exercise of any powers of the Board under this Act in or affecting any highway (including any highway on a bridge) vested in the authority (that is to say):—

For protection
of highway
and bridge
authorities.

- (1) In this section—

" authority " means the authority in whom a highway or bridge is vested other than any of the county councils referred to in section 65 (For protection of Essex Hertfordshire Kent Middlesex and Surrey county councils) of this Act:

" apparatus " includes any line of pipes discharge pipe post wire conductor or other works;

" the surveyor " means the surveyor of the authority:

- (2) All apparatus (other than replacements of existing apparatus in the same position as the apparatus replaced) to be laid along any highway shall be laid in such position in or at the side thereof as the authority in writing under the hand of the surveyor may reasonably direct:
- (3) The notice required by section 30 of the Waterworks Clauses Act 1847 shall (save in cases of leakage bursting or other emergency when as long notice shall be given as is reasonably practicable) be seven clear days instead of three clear days:
- (4) The plan required by section 31 of the Waterworks Clauses Act 1847 shall be accompanied (where applicable) by a section of the proposed works and shall be delivered to the authority not less than seven clear days before the Board commence to execute the works and any difference respecting such plan

PART II.
—cont.

or section or the temporary or other works referred to in the said section 31 shall be determined by arbitration instead of in the manner prescribed by the said section 31:

- (5) All works of the Board shall be so executed by the Board as not to stop except to the extent authorised by this Act nor unreasonably to impede or interfere with the traffic on any highway and the Board shall not without the consent of the surveyor (which consent shall not be unreasonably withheld) open or break up at any one time a greater continuous length than one hundred and fifty yards of any highway or leave an interval of less than one hundred and twenty yards between any two places at which the Board may open or break up such highway:
- (6) The authority shall not be liable for or in respect of any damage or injury done to any mains pipes or other works of the Board laid or executed under the powers of this Act in or along any highway by reason of such mains pipes or other works being laid or executed at a depth below the surface of such highway insufficient for their protection from injury arising from the reasonable use by the authority of any steam or other roller not exceeding fifteen tons in weight for the repair of such highway or of any traction engine not exceeding the weight aforesaid:
- (7) Any difference which may arise between the authority and the Board under the foregoing provisions of this section shall be determined by arbitration.

Saving for
certain
requirements
&c.

72. Nothing in this Act shall authorise the development of any land or the erection of any buildings or the execution of any works in contravention of any requirements or restrictions imposed by or under any enactment as to the erection placing or making of buildings erections or excavations or the construction formation or laying out of means of access to or from any road or as to the submission of plans and specifications or the giving of notices to any authority. Provided that this section shall not apply to or affect the execution by the Board of any works shown on the originally deposited plans and sections or the substituted plan and section nor shall anything in this section deprive the Board of any exemption (whether absolute or conditional) to which they are entitled under any enactment referred to in this section.

Saving for
town and
country
planning.

73. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts

or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 2.
7 & 8 Geo. 6.
c. 47.

PART III.

FINANCIAL PROVISIONS.

74. All expenses incurred by the Board in the execution of the purposes of this Act and not otherwise provided for including the payment of interest on any stock issued or moneys borrowed for those purposes and the redemption of such stock and the repayment of such moneys (but excluding expenses properly chargeable to capital and payable out of borrowed moneys) shall be paid out of the water fund.

Expenses of
execution of
Act.

75.—(1) The Board may from time to time (in addition to any other moneys which they are now or may by any other Act be authorised to borrow) borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of any sums so borrowed and the payment of interest thereon they may mortgage or charge the water fund and all their revenues and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (which periods shall be deemed to be the prescribed periods for the purposes of the enactments referred to in section 76 (Application of certain financial provisions of former Acts) of this Act):—

Power to
borrow.

Purpose.	Amount.	Period for re-payment.
(a) The construction of reservoirs No. 1 and No. 2 (Works Nos. 4 and 7) cuts and diversions of roads and streams authorised by this Act	£ 5,943,000	Years. 60
(b) The construction of Works Nos. 14 15 16 17 18 19 20 and 21 authorised by this Act	57,000	60
(c) The construction of conduits or lines of pipes in connection with the new works	4,029,000	40
(d) The erection of buildings in connection with the foregoing purposes (a) (b) and (c)	507,000	40
(e) The provision of machinery	760,000	25
(f) The acquisition of lands and easements for the purposes of the works and buildings referred to in the foregoing items (a) to (d)	642,000	60
(g) The acquisition of lands and easements for other purposes under the powers of this Act ...	280,000	60
(h) The general purposes of the undertaking ...	3,000,000	30
(i) The payment of the costs charges and expenses of this Act as hereinafter defined	The sum requisite	5

PART III.
—cont.

(2) (a) The Board may also with the consent of the Minister of Health borrow such further sum or sums of money as may be required for any of the purposes of this Act:

(b) Any money borrowed under this subsection shall be repaid within such period or periods as may be prescribed by the Minister of Health (which period or periods shall be deemed to be the prescribed period or periods for the purposes of the enactments referred to in the said section 76 of this Act).

(c) In order to secure the repayment of any money borrowed under this subsection and payment of interest thereon the Board may mortgage or charge the water fund and all their revenues.

Application of
certain
financial
provisions of
former Acts.
6 Edw. 7.
c. lxxxvii.
11 & 12 Geo. 5.
c. cxv.

76.—(1) Section 27 (Provisions as to local inquiries) of the Metropolis Water Act 1902 shall apply for the purposes of this Act and the following sections of the Metropolitan Water Board Act 1906 and the schedule to that Act and section 60 (Power to vary rate of accumulation of sinking funds) of the Metropolitan Water Board (Various Powers) Act 1921 shall extend and apply to and with respect to moneys authorised to be borrowed under the powers of this Act and the repayment thereof as if such sections and the said schedule had been in terms re-enacted in this Act:—

Marginal note.	Number of section.
Formation maintenance and application of sinking fund	8
Increase reduction or discontinuance of pay- ments to sinking fund	9
Surplus of sinking fund	10
Power to re-borrow	11
Form of mortgage	12
Register of mortgages	13
Transfer of mortgages	14
For protection of lenders	15
Board not to regard trusts	16
Application of borrowed moneys	17
Power to raise money by creation and issue of additional amounts of Metropolitan water stock	18
Receiver	19

Provided that the said section 27 of the Metropolis Water Act 1902 shall for the purposes of this Act have effect as if the words “not exceeding three guineas a day” were omitted from subsection (3) thereof.

(2) The repayment of the said moneys shall be effected either—

PART III.
—cont.

- by equal yearly or half-yearly instalments of principal or of principal and interest combined; or
- by means of a sinking fund; or
- partly by such instalments and partly by a sinking fund.

(3) Every such instalment and payment to a sinking fund shall be paid out of the water fund and the first payment by instalments or to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months after the date of the borrowing of the money in respect of which such payment is made.

77. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Saving for Local Authorities Loans Act 1945.
8 & 9 Geo. 6. c. 18.

78. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) without such consent.

Saving for emergency powers of Treasury.
2 & 3 Geo. 6. c. 62.
3 & 4 Geo. 6. c. 20.

PART IV.

MISCELLANEOUS.

79. The time limited—

(a) by section 19 (Period for completion of works) of the Metropolitan Water Board Act 1915 for the completion of the reservoir (No. 1) authorised by that Act; and

(b) by section 8 (Period for completion of works) of the Metropolitan Water Board Act 1931 for the completion of the service reservoir (Work No. 1) authorised by that Act;

is hereby extended until the first day of October one thousand nine hundred and fifty-five.

Extension of time for completion of certain works.
5 & 6 Geo. 5. c. lxxiii.
21 & 22 Geo. 5. c. c.

80.—(1) From and after the date of the passing of this Act—

(a) paragraphs (1) (3) (4) and (5) of the conditions specified in the proviso to section 162 (Power to water board to abstract water) of the Thames Conservancy Act 1932 shall be and are hereby repealed;

Amendment of Thames Conservancy Act 1932.
22 & 23 Geo. 5. c. xxxvii.

PART IV.
—cont.

(b) the daily average quantity of water taken diverted or impounded by the Board from the river Thames under the said section 162 shall not—

(i) during any calendar year¹ ending before the date (hereinafter in this section referred to as “ the prescribed date ”) on which either of the reservoirs No. 1 (Work No. 4) and No. 2 (Work No. 7) by this Act authorised is first filled for use exceed three hundred million gallons;

(ii) during any part of the calendar year in which the prescribed date occurs down to and including the prescribed date exceed three hundred million gallons and during the part of that year remaining after that date exceed four hundred million gallons;

(iii) during any subsequent calendar year exceed four hundred million gallons:

Provided that in the period commencing on the first day of May and ending on the thirty-first day of October in any such calendar year as is referred to in either of the foregoing subparagraphs (ii) and (iii) the daily average quantity of water so taken diverted or impounded shall not exceed three hundred and thirty million gallons.

(2) From and after the prescribed date section 163 (Payments by water board) of the said Thames Conservancy Act 1932 shall be read and have effect as if the words “ four hundred million gallons ” were substituted therein for the words “ three hundred million gallons.”

Amendment of
section 21 of
River Lee
Water Act
1855.
18 & 19 Vict.
c. cxcvi.

81.—(1) Section 21 (Limit of 2,500 cubic feet of water a minute for New River Company) of the River Lee Water Act 1855 is hereby amended so as to authorise the Board at any time when the flow of water in the river Lee at Feildes Weir is at the rate of not less than thirty-five million gallons per twenty-four hours to take from that river through the gauge referred to in the said section such quantity of water as they may think fit not exceeding thirty-two million five hundred thousand gallons in any one day of twenty-four hours reckoned from midnight:

Provided that the powers of this section shall not be exercised so as to reduce—

- (a) the quantities of water to which the Lee Conservancy Board are entitled or which are reserved to them by virtue of the River Lee Water Act 1855; or
- (b) the water in any pond of the Lee Navigation below the head levels referred to in section 27 of the said Act of 1855.

(2) The foregoing provisions of this section shall cease to have effect as from the thirty-first day of December one thousand nine hundred and fifty or such later date (if any) as may be agreed between the Board and the Lee Conservancy Board.

(3) The order dated the ninth day of February one thousand nine hundred and forty-four made by the Minister of Health under the Defence (General) Regulations 1939 and intituled "the Metropolitan Water Board (River Lee) Order 1944" is hereby repealed.

82. The Board may for the purpose of the transmission of electric power for use for purposes of their undertaking or for the provision of means of telephonic communication between such works place or lay electric cables and wires in through under or over any highway or lands whether within or without the limits of supply and may for any such purpose exercise the like rights of opening and breaking up highways as are exerciseable by them for the purpose of laying mains or pipes but subject to the like obligations as attach to the exercise of those rights. Provided that—

- (a) any electric cables for the transmission of electric power shall not be laid otherwise than underground;
- (b) nothing in this section shall authorise the Board to acquire compulsorily any lands or interest in lands;
- (c) the Board shall not place or lay any such electric cables or wires outside the administrative county of London except with the consent of the local authority and the highway authority (if any) concerned and in accordance with such conditions as either of those authorities may attach to their consent but such consent shall not be unreasonably withheld nor shall unreasonable conditions be attached thereto and any question whether a withholding of consent or a condition is or is not reasonable shall be referred to arbitration:

Provided also that the Board shall not lay down any electric cable or wire in across or under any road bridge level-crossing or approach belonging to or maintainable by a railway company or the London Passenger Transport Board except with the consent in writing of that company or board which consent shall not be unreasonably withheld and if any difference arises as to whether such consent is unreasonably withheld such difference shall be referred to arbitration.

(2) All the regulations for the time being made by the electricity commissioners or by the local authority under section 6 of the Electric Lighting Act 1882 for securing the safety of

PART IV.
—cont.

the public from personal injury or from fire or otherwise shall extend and apply to any electric cables and wires placed or laid under the provisions of this section and in the application of those regulations and byelaws the Board shall be deemed to be undertakers and this Act shall be deemed to be a special Act.

For further
protection of
Postmaster-
General.

83.—(1) All provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to any electric cables and wires placed or laid under the provisions of section 82 (Power to lay electric cables &c.) of this Act and in the application of those provisions the Board shall be deemed to be undertakers and this Act shall be deemed to be a special Act.

32 & 33 Vict.
c. 73.

(2) Any cables or wires placed or laid by the Board shall not be used for the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

For protection
of metropolitan
borough
councils.

84. The exercise within the county of London of the powers contained in section 82 (Power to lay electric cables &c.) of this Act shall be subject to the following provisions:—

- (1) Nothing in the said section shall authorise the Board to place any electric cable or wire above ground:
- (2) The provisions of sections 14 16 76 77 and 81 of the schedule to the Electric Lighting (Clauses) Act 1899 and of section 17 of that schedule (except the provisions enabling undertakers to alter the position of pipes and wires) shall apply to the exercise of the said powers with the substitution of references to the Board for the references in those sections to the undertakers and for the purposes of this section the provisions contained in that schedule shall apply to the county of London:
- (3) The Board shall not place or lay any electric cable or wire so as to form a connection between any of their works situate elsewhere than in any one metropolitan borough or in any two adjoining metropolitan boroughs except with the consent in writing of the councils of all the metropolitan boroughs affected by a proposed placing or laying:
- (4) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other provisions of this Act to the benefit of which the council of a metropolitan borough would have been entitled if this section had not been enacted.

85.—(1) In this section—

PART IV.

—cont.

“undertakers” has the same meaning as in the Electric Lighting Act 1882 and includes a joint electricity authority; For protection of electricity undertakers.

“apparatus” means all or any electric lines and works as respectively defined in the Electric Lighting Act 1882 belonging to any undertakers.

(2) (a) Whenever by virtue of section 10 (Power to divert roads and footpaths) or section 12 (Power to stop up road and footpaths) of this Act any road or footpath or part of a road or footpath in which any apparatus is for the time being laid or placed is stopped up or diverted or the right of way thereover is extinguished the undertakers to whom the apparatus belongs shall be at liberty to remove it to and relay or replace it in the road or footpath (if any) substituted for the road or footpath or part of a road or footpath so stopped up or diverted or over which the right of way is so extinguished or in such other situation as they may reasonably determine or (if it be reasonable so to do) to provide and lay or place in such substituted new portion of road or footpath or other situation similar apparatus equally suitable in lieu of such existing apparatus and the Board shall on demand repay to them the cost reasonably incurred by them in so doing.

(b) Whenever by reason of the exercise by the Board of the powers of either of the said sections any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Board under the provisions of this subsection) is rendered derelict useless or unnecessary the Board shall forthwith pay to the undertakers to whom the apparatus belongs such a sum as may be agreed between the Board and the undertakers or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of such apparatus and such apparatus shall upon such payment become the property of the Board.

(3) The Board shall pay to the undertakers the reasonable cost of and incidental to the cutting off of any apparatus from any other apparatus of the undertakers and of and incidental to any other works or things rendered necessary or expedient in consequence of any such alteration as is referred to in paragraph (a) of subsection (2) of this section of the position of such apparatus or in consequence of such apparatus being rendered derelict useless or unnecessary.

(4) (a) Any question or dispute which shall arise between the Board and any undertakers under the foregoing provisions of this section (other than a question or dispute as to the

PART IV.
—cont.

meaning and construction of this section) shall be referred to arbitration.

(b) In settling any difference under the foregoing provisions of this section the arbitrator shall have regard to any duties or obligations to which the undertakers may be subject in respect of their apparatus and may if he thinks fit require the Board to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus of the undertakers is used.

(5) (a) In this subsection—

the expression “ authorised distributor ” means any local authority company body or person (including a joint electricity authority) authorised to supply electricity for the purposes of a general supply as defined in the schedule to the Electric Lighting (Clauses) Act 1899 and any power company as defined in the Electricity (Supply) Act 1919 but does not include the Central Electricity Board;

the expression “ area of supply ” in relation to any authorised distributor means the area in which that authorised distributor is for the time being empowered by any Act of Parliament or order made under the Electricity (Supply) Acts 1882 to 1936 to supply electricity for the purposes of a general supply or in the case of a power company for power purposes.

(b) Subject to the provisions of paragraphs (c) and (d) of this subsection nothing in section 82 (Power to lay electric cables &c.) of this Act shall authorise the Board to transmit electricity whether generated by the Board or obtained by them from another source from any works of the Board to any other works of the Board without the consent of any authorised distributor in whose area of supply such other works are situate so however that the consent of any authorised distributor shall be deemed to have been given if not refused in writing within one month from the receipt by the authorised distributor of the application for such consent or if on the application of the Board the Minister of Fuel and Power shall determine that the withholding of such consent is unreasonable:

Provided that—

(i) if an application for the consent of any authorised distributor under this paragraph is addressed to the head office of the authorised distributor and sent by registered post the application shall be deemed to have

9 & 10 Geo 5.
c. 100.

been received by the authorised distributor on the third day after the date on which the application was so posted; and

- (ii) the consent of an authorised distributor shall not be deemed to be unreasonably withheld if the authorised distributor is willing and in a position to supply to the Board the electricity required by the Board for use at such other works of the Board upon reasonable terms and within a reasonable time and in considering what is a reasonable time the said Minister shall have regard to the time within which the Board could obtain the requisite supply of electricity from any other source.

(c) The consent of an authorised distributor shall not be required to the transmission by the Board of electricity generated by the Board—

- (i) to works of the Board adjacent or in close proximity to the premises in which the electricity has been generated (which works are in this subsection referred to as “neighbouring works”) if both the neighbouring works and the said premises are within the area of supply of that authorised distributor and if the Board at the time when they commence to transmit electricity to the neighbouring works are not taking a supply of electricity for use thereat from that authorised distributor; or
- (ii) to works of the Board which are not neighbouring works if the Board at the time when they commence to transmit electricity thereto are not taking a supply of electricity for use thereat from that authorised distributor and the Board give to that authorised distributor a reasonable opportunity of quoting terms for the supply of electricity required by the Board for use at those works and that authorised distributor is not prepared to quote reasonable terms for commencing within a reasonable time to furnish such supply.

(d) Nothing in this subsection shall require the consent of any authorised distributor to the transmission of electricity by the Board for the purposes of telephonic communications or of operating the remote electrical control apparatus of the Board’s installations:

(e) Any difference between the Board and any authorised distributor under this subsection shall be referred to and determined by the Minister of Fuel and Power whose decision shall be final.

PART IV.

—cont.

Amendment of
section 61 of
Metropolitan
Water Board
(Various
Powers) Act
1907.
38 & 39 Vict.
c. 55.
26 Geo. 5 &
1 Edw. 8. c. 49.

86. Section 61 (Power to Board to exercise powers of local authorities under Public Health Act 1875) of the Metropolitan Water Board (Various Powers) Act 1907 shall be read and have effect as if—

- (a) except as respects section 308 of the Public Health Act 1875 there were substituted for the references to that Act references to the Public Health Act 1936;
- (b) in subsection (1) of the said section 61 the words “within or without their limits of supply” were substituted for the words “within their limits of supply” and the words “within or without their respective districts” were substituted for the words “within their respective districts”; and
- (c) subsection (2) of the said section 61 were omitted therefrom:

Provided that the Board shall not exercise the powers of the said Acts as amended and applied by this section in relation to land without the limits of supply not forming part of a street except with the consent of the local authority of the district in which that land is situate and also of the highway authority concerned if any apparatus of the Board would be laid in on or over that land within two hundred and twenty feet of any highway but a consent required for the purposes of this proviso shall not be unreasonably withheld and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Minister of Health.

Remission of
water rates on
grounds of
poverty.

87. The Board shall have power to reduce or remit the payment of any sum due in respect of the supply by them of water on account of the poverty of any person liable for the payment thereof.

Information to
be supplied by
owners of
premises in
certain cases.

88.—(1) Where the owner (not being the occupier) of any premises is liable for the payment of the rates chargeable by the Board for a supply of water thereto for domestic purposes such owner shall from time to time within twenty-one days after demand in writing by the Board deliver to the Board a list of the occupiers of the premises in respect of which he is so liable and such particulars with respect to the periods for which any of those premises have been unoccupied as the Board may require for the purpose of enabling them to determine what amount is properly due from the owner in respect of such rates.

(2) If any such owner refuses or neglects to comply with the provisions of this section or knowingly delivers to the Board particulars which are untrue in any material respect he shall in respect of each offence be liable on summary conviction to a penalty not exceeding five pounds.

89. The Board may make payments for or in connection with—

- (a) the reception and entertainment by way of official courtesy of distinguished persons residing in or visiting the limits of supply or any work of the Board and persons representative of or connected with the public supply of water and the supply of information to any such persons;
- (b) visits by way of official courtesy by or on behalf of the Board; and
- (c) the arrangement and conduct of ceremonies relating to or arising out of the statutory functions of the Board;

PART IV.
—cont.
Expenses in connection with ceremonies &c.

including payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Board in connection with any of the matters aforesaid:

Provided that the Board shall not in respect of any period of twelve months ending on the thirty-first day of March expend under the powers of this section any greater sum in the whole than two thousand five hundred pounds.

90.—(1) The Board may if they think fit defray—

- (a) the reasonable travelling expenses incurred by any committee of the Board or by any sub-committee of any such committee in the discharge of the functions conferred on the committee or sub-committee by the Board;
- (b) the reasonable travelling expenses incurred by individual members of the Board or of any committee thereof or of any sub-committee of any such committee in attending meetings of the Board or of the committee or sub-committee; and
- (c) the reasonable travelling and subsistence expenses incurred by individual members of the Board or of any committee thereof or of any sub-committee of any such committee in making at the request of the Board or of any committee thereof or of a sub-committee of any such committee visits of inspection of any works offices or other places (whether of the Board or of any company or other authority) or in attending at any place for the discharge of official functions entrusted to them by the Board or the committee or sub-committee.

Travelling &c. expenses of members and committees of Board.

(2) Section 32 (Payment of travelling expenses of members and committees of Board) of the Metropolitan Water Board Act 1939 is hereby repealed.

2 & 3 Geo. 6.
c. xcvi.

PART IV.

—cont.

Amendment of
section 80 of
Metropolitan
Water Board
Act 1913.
3 & 4 Geo. 5.
c. xcvi.

91. Section 80 (Power to Board to contribute to funds of hospitals &c.) of the Metropolitan Water Board Act 1913 shall be read and have effect as if the sum of five hundred pounds had been mentioned therein instead of the sum of two hundred and fifty pounds.

As to female
contributors to
superannuation
fund.

92. Where a contributing member of the superannuation fund established by the Board under Part IV (Superannuation Fund) of the Metropolitan Water Board (Various Powers) Act 1907 being a female has contracted or hereafter contracts a marriage but has been or shall be retained in the service of the Board after such marriage owing to conditions arising out of the present war then as respects that contributing member the provisions of section 44 (Forfeiture of rights under scheme in certain cases) of the said Act and of clause 24 of the superannuation and provident fund scheme prepared and approved by the Board under the said Part IV relating to the payment to be made to female contributors leaving the service of the Board on marriage shall apply and have effect as if her marriage had been contracted immediately before the date on which she actually leaves such service.

Arbitration.

93. Where under this Act any question or dispute (other than a question or dispute for the determination of which provision is made by the Lands Clauses Acts) is to be referred to or determined by an arbitrator or arbitration the reference shall be subject to the provisions of the Arbitration Acts 1889 to 1934 and except where otherwise provided the arbitrator shall failing agreement be appointed by the President of the Institution of Civil Engineers on the application of either party to the question or dispute after notice in writing to the other.

Crown rights.

94. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those commissioners on behalf of His Majesty first had and obtained for that purpose.

Saving rights
of Duchy of
Lancaster.

95. Nothing contained in this Act shall extend or operate or authorise the Board to take use enter upon or in any manner interfere with any land soil water or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the

said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

PART IV.
—cont.

96. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board. Costs of Act.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PROPERTIES OF WHICH THE BOARD MAY ACQUIRE PARTS ONLY.

County.	Local area.	No. on deposited plans.
Buckingham...	Parish of Datchet rural district of Eton.	2 3 9 18 and 19.
Buckingham...	Parish of Horton rural district of Eton.	8 9 10 11 12 13 14 15 16 20 24 25 42 59 61 62 63 74 75 82 89 91 95 96 105 107 109 110 117 and 118.
Buckingham...	Parish of Wyrardisbury rural district of Eton.	2A 5 7 and 8.
Middlesex ...	Urban district of Staines.	13 14 82 83 88 120 121 122 123 124 125 126 128 130 131 134 136 137 138 140 141 149 152 163 164 165 166 168 170 171 173 and 174.
Middlesex ...	Urban district of Feltham.	1 4 5 6 7 8 9 12 16 and 24.
Middlesex ...	Urban district of Sunbury- on-Thames.	7 17 18 19 29 and 30.
Middlesex ...	Borough of Hendon.	2 and 3.

SECOND SCHEDULE.

A TIPPING SCHEME FOR THE DISPOSAL OF SURPLUS EXCAVATED
MATERIALS.

1. This tipping scheme is for the purpose of providing for the disposal in an orderly manner of the surplus materials excavated by the Board from the land used by the Board for the construction of the reservoir No. 2 at Wraysbury and the conduits and works connected therewith.

2. The tipping scheme is based on the assumption that the Board will have for disposal excavated material principally from the reservoir site.

3. The land on which the works of the Board will be constructed contains a large quantity of material which if washed crushed and graded by the use of the plant and machinery installed by members of the Ballast Sand and Allied Trades Association (hereinafter referred to as "the association") at their ballast pits within easy distance from the sites of the Board's works would provide useful building material for the London building trade and it would be to the public advantage that this should be made available for the purpose.

4. It has been estimated that when the Board commence construction they will have for disposal from the site of reservoir No. 2 one million cubic yards of ballast per annum for a period of three years making in all three million cubic yards.

5. It is the object of the association in proposing the tipping scheme to prevent a disturbance of the market for gravel and sand for building purposes by sudden fluctuations in the normal rates of supplies.

6. The excavated material will consist of the following classes which will have to be disposed of as it is excavated :—

- (a) Top soil suitable for agriculture to be disposed of at the Board's discretion ;
- (b) Weak material consisting of loam and clay suitable only for filling purposes This is principally the over burden on the top of the ballast ;
- (c) Ballast which by crushing washing and grading is converted into gravel and sand and is indispensable for making concrete and for building purposes.

7. The members of the association have available a number of ballast pits partially worked out where the excavated material can be tipped there are also some wholly worked out pits The position and available acreage of those ballast pits are described in the appendix to this scheme also the acreage available in each pit for weak material and ballast respectively and the proportions in which weak material and ballast could be received by a pit The positions of the said ballast pits are shown on the plan referred to in section 56 (Confirmation of scheduled scheme) of this Act.

The principles on which the list in the appendix has been compiled are—

- (1) That those pits which are completely worked out will receive only weak material where it will remain permanently ;
- (2) That those pits which are partially worked out but active will receive ballast and/or weak material the weak material being kept separate from the ballast which will be processed by the plant installed at the pit.

8. The following provisions shall apply to the disposal of surplus material excavated by the Board from the site of reservoir No. 2 :—

- (a) No surplus ballast from the excavation of reservoir No. 2 shall be deposited elsewhere than in a designated pit to be selected by the Board ; All surplus ballast to be received.
- (b) The disposal of weak material to be at the Board's discretion The Board to select from designated pits.
The precise parts of a designated pit if selected to be used by the Board for this purpose and the available capacity of that pit shall be agreed between the Board and the pit owner before tipping commences ;
- (c) The quantities of weak material or of ballast to be tipped in any designated pit shall not without the previous consent of the pit owner exceed the capacity as previously agreed between the Board and the pit owner ; Tipping not to exceed prescribed quantities.

2ND SCH.

—cont.

Weak material
to be tipped free.

(d) No tipping charge for weak material shall be made either by the pit owner for receiving or by the Board for tipping the same. The tipped material shall be levelled off by and at the expense of the Board as the work proceeds and to the reasonable satisfaction of the pit owner ;

Payment to
Board by
individual
owners on
disposal of
ballast.

(e) Payment for the ballast tipped by the Board shall be made by the individual pit owners to the Board for the quantities tipped at their respective pits and shall be made as and when the pit owner disposes of the ballast subject to the payment of a lump sum for the residue as hereafter provided ;

Payment for
residue of
ballast.

(f) If any pit owner has any residue of ballast tipped by the Board undisposed of at the expiration of five years after the date of the completion of tipping at his pit he shall within six months thereafter pay to the Board an agreed lump sum for the residue ;

Price of ballast.

(g) The sum to be paid by the owner of the designated pit to the Board for the deposited ballast shall failing agreement be determined by the standing arbitrator by reference to the value of the same quality of ballast lying as a natural deposit in that pit ;

Accounts.

(h) Accounts shall be rendered and paid quarterly ;

Standing
arbitrator.

(i) A standing arbitrator shall be appointed for the purposes of this agreement by agreement between the Board and the association or failing agreement by the President of the Chartered Surveyors' Institution on the application of either party after notice to the other and the standing arbitrator shall determine all differences arising between the Board and any pit owner or the association in the operation of the agreement. The fees and expenses of the standing arbitrator shall be paid by the Board and the association in equal shares.

Material from
conduit sites.

9. Surplus material excavated in the construction of the conduits and works other than reservoirs Nos. 1 and 2 shall be tipped in the pit from which it is excavated if the owner so requires under the same terms and conditions as for a designated pit.

Definitions.

10. The following terms shall have the meanings hereby respectively assigned to them :—

“ designated pit ” means a ballast pit specified in the appendix and identified by the reference to the ordnance map attached thereto ;

“ ballast ” means a naturally occurring mixture of sand gravel shingle and stones and other material of such a quality that when processed by the normal plant used by the trade it will render an aggregate capable of passing the appropriate British standard specifications but excluding an appreciable quantity of clay brick-earth and other deleterious materials ;

“ weak material ” means all other excavated material than ballast except top soil suitable for agricultural use ;

“ cubic yard ” means a cubic yard of ballast measured forthwith as delivered at the designated pit ;

"surplus ballast" means all ballast excavated from the site of the reservoir and other works connected therewith after satisfying the requirements of the Board in the construction of those works and in carrying on their undertaking.

2ND SCH.
—cont.

APPENDIX TO TIPPING SCHEME.

LIST OF DESIGNATED PITS AT WHICH FACILITIES ARE OFFERED BY MEMBERS OF THE BALLAST SAND AND ALLIED TRADES ASSOCIATION FOR THE RECEPTION OF SURPLUS WEAK MATERIAL AND/OR SURPLUS BALLAST.

Mark on plan.	Location of pit.	Owners.	Approximate total acreage.	Approximate proportionate allocation of acreage available as estimated 15th May 1945.		Approximate depth of pit.
				Weak Materials.	Ballast.	
A	Brands Hill Colnbrook.	Wm. Boyer & Sons Ltd.	10	10	—	Feet. 14/15
B	Near Wraysbury.	Wraysbury Sand & Gravel Co. Ltd.	68	46	*22	18
C	Poyle Park.	Dr. Bowie.	5½	5½	—	6
D	do.	do.	12	12	—	6
E	Site of Reservoir No. 2.	Moor Lane Sand and Gravel Co. Ltd.	57½	—	57½	18
F	Brands Hill Colnbrook.	Wm. Boyer & Sons Ltd.	30	30	—	14/15
G	Poyle.	do.	10	10	—	14/15
H	Wraysbury.	Thos. Roberts (Westminster) Ltd.	25	15	*10	20
I	do.	do.	50	30	*20	20
J	Egham.	Surrey Sand and Gravel Co. Ltd.	50	30	20	15
K	do.	Longside Sand and Gravel Co.	20	{ 12 —	{ — 8	{ 6 @ 16 6 @ 24 20
K(i)	West Drayton.	H. Sabey & Co. Ltd.	15	9	6	12
L	Feltham.	Hall & Co. Ltd.	25	16	9	18/20
M	do.	Feltham Sand and Gravel Co. Ltd.	140	88	52	Pond 12/15
N	do.	do.	15	9	6	do.
O	Ashford.	W. J. Lavender Ltd.	14	9	5	14
P	Feltham Hill.	Cranford Sand and Ballast Co. Ltd.	90	56	34	15
Q	Feltham.	Feltham Sand and Gravel Co. Ltd.	60	38	22	12/15
S	Sunbury.	Charlton Sand and Ballast Co. Ltd.	30	18	12	15
T	Shepperton.	Thames Ballast (Shepperton) Ltd.	20	12	8	20
U	Upper Halliford.	H. Lavender & Son Ltd.	20	12	8	15
V	do.	W. J. Lavender Ltd.	40	25	15	15
W	Lower Halliford.	H. Lavender & Son Ltd.	20	12	8	15

* Willing to pile above ground level.

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*Metropolitan Water Board
Act, 1946.*

9 & 10 GEO. 6.

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